



CHAPTER 16

An Act to consolidate the Food and Drugs Act, 1938, the Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950, and the Food and Drugs Amendment Act, 1954, together with certain other enactments amending and supplementing Part V of the said Act of 1938 in relation to slaughterhouses and knackers' yards.

[22nd November, 1955]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

GENERAL PROVISIONS AS TO FOOD AND DRUGS

Composition and labelling of food and drugs

1.—(1) No person shall add any substance to food, use any substance as an ingredient in the preparation of food, abstract any constituent from food, or subject food to any other process or treatment, so as (in any such case) to render the food injurious to health, with intent that the food shall be sold for human consumption in that state.

Offences in connection with preparation and sale of injurious foods and adulterated drugs.

(2) No person shall add any substance to, or abstract any constituent from, a drug so as to affect injuriously the quality, constitution or potency of the drug, with intent that the drug shall be sold in that state.

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(3) Subject to the provisions of this section, no person shall—

(a) sell for human consumption, offer, expose or advertise for sale for human consumption, or have in his possession for the purpose of such sale, any food rendered injurious to health by means of any operation described in subsection (1) of this section, or

(b) sell, offer, expose or advertise for sale, or have in his possession for the purpose of sale, any drug injuriously affected in its quality, constitution or potency by means of any operation described in subsection (2) of this section.

(4) A person who contravenes any of the foregoing provisions of this section shall be guilty of an offence.

(5) In determining for the purposes of this Act whether an article of food is injurious to health, regard shall be had not only to the probable effect of that article on the health of a person consuming it, but also to the probable cumulative effect of articles of substantially the same composition on the health of a person consuming such articles in ordinary quantities.

(6) In proceedings under this section for an offence consisting of the advertisement for sale of any food or drug, it shall be a defence for the person charged to prove that, being a person whose business it is to publish, or arrange for the publication of, advertisements, he received the advertisement for publication in the ordinary course of business.

General
protection for
purchasers of
food and drugs.

2.—(1) If a person sells to the prejudice of the purchaser any food or drug which is not of the nature, or not of the substance, or not of the quality, of the food or drug demanded by the purchaser, he shall, subject to the provisions of the next following section, be guilty of an offence.

(2) In proceedings under this section it shall not be a defence to allege that the purchaser bought for analysis or examination and therefore was not prejudiced.

(3) In this section, except so far as it relates to drugs, the reference to sale shall be construed as a reference to sale for human consumption.

Defences
available in
proceedings
under s. 2.

3.—(1) In proceedings under section two of this Act for an offence consisting of the sale of food to which any substance has been added, or in the preparation of which any substance has been used as an ingredient, or from which any constituent has been abstracted, or which has been subjected to any other process or treatment, other than food thereby rendered injurious to health, it shall be a defence for the person charged to prove that the operation in question was not carried out fraudulently, and that the article was sold having attached thereto a notice of

adequate size, distinctly and legibly printed and conspicuously visible, stating explicitly the nature of the operation, or was sold in a wrapper or container displaying such a notice.

(2) The provisions of the foregoing subsection shall apply in relation to proceedings for an offence consisting of the sale of a drug to which any substance has been added, or from which any constituent has been abstracted, other than a drug thereby injuriously affected in its quality, constitution or potency, as they apply in relation to any such offence as is therein mentioned.

(3) In proceedings under section two of this Act in respect of any food or drug containing some extraneous matter, it shall be a defence for the defendant to prove that the presence of that matter was an unavoidable consequence of the process of collection or preparation.

(4) In proceedings under the said section two in respect of diluted whisky, brandy, rum or gin, it shall be a defence for the defendant to prove that the spirit in question had been diluted with water only and that its strength was still not lower than thirty-five degrees under proof; but nothing in this subsection shall be taken as affecting the provisions of subsection (4) of section one hundred and sixty-one of the Customs and Excise Act, 1952 (which relates to the dilution of spirits after computation of duty).

4.—(1) The Ministers may, so far as appears to them to be necessary or expedient in the interests of the public health, or otherwise for the protection of the public, make regulations for any of the following purposes:—

Regulations
as to
composition
of food, etc.

- (a) for requiring, prohibiting or regulating the addition of any specified substance, or any substance of any specified class, to food intended for sale for human consumption or any class of such food, or the use of any such substance as an ingredient in the preparation of such food, and generally for regulating the composition of such food;
- (b) for requiring, prohibiting or regulating the use of any process or treatment in the preparation of any food intended for sale for human consumption, or any class of such food;
- (c) for prohibiting or regulating the sale, possession for sale, offer or exposure for sale, consignment, or delivery, of food which does not comply with any of the regulations, or in relation to which an offence against the regulations has been committed or would have been committed if any relevant act or omission had taken place in England and Wales, or for prohibiting or regulating the importation of any such food as aforesaid;

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- (d) for prohibiting or regulating the sale, possession for sale, or offer, exposure or advertisement for sale, of any specified substance, or of any substance of any specified class, with a view to its use in the preparation of food for human consumption, and the possession of any such substance for use in the preparation of food intended for sale for human consumption.

(2) In the exercise of their functions under this section the Ministers shall have regard to the desirability of restricting, so far as practicable, the use of substances of no nutritional value as foods or as ingredients of foods.

(3) Regulations made under this section may apply to cream, and to any food containing milk; but except as aforesaid such regulations shall not apply to milk.

(4) Regulations so made may provide, in relation to such cases as may be specified and subject to such exceptions as may be allowed by or under the regulations, that, where any food is certified by a public analyst as being food to which the regulations apply so far as they are made under paragraph (c) of subsection (1) of this section, that food may be treated for the purposes of section nine of this Act (under which food may be seized and destroyed on the order of a justice of the peace) as being unfit for human consumption:

Provided that nothing in any such regulations shall be taken as prejudicing the generality of the powers conferred by the said section nine.

Power of
Ministers to
obtain
particulars of
certain food
ingredients.

5.—(1) For the purpose of enabling them to exercise their functions under section four of this Act, the Ministers may by order require every person who at the date of the order or at any subsequent time carries on a business which includes the production, importation or use of substances of any class specified in the order to furnish to the Minister of Agriculture, Fisheries and Food, within such time as may be so specified, such particulars as may be so specified of the composition and use of any such substance sold in the course of that business for use in the preparation of food for human consumption, or used for that purpose in the course of that business.

(2) Without prejudice to the generality of the foregoing subsection, an order made thereunder may require the following particulars to be furnished in respect of any substance, that is to say—

- (a) particulars of the composition and chemical formula of the substance,
- (b) particulars of the manner in which the substance is used or proposed to be used in the preparation of food,
- (c) particulars of any investigations carried out by or to the knowledge of the person carrying on the business in question, for the purpose of determining whether and to

what extent the substance, or any product formed when the substance is used as aforesaid, is injurious to, or in any other way affects, health,

- (d) particulars of any investigations or inquiries carried out by or to the knowledge of the person carrying on the business in question for the purpose of determining the cumulative effect on the health of a person consuming the substance in ordinary quantities.

(3) No particulars furnished in accordance with an order under this section, and no information relating to any individual business obtained by means of such particulars, shall, without the previous consent in writing of the person carrying on the business in question, be disclosed except—

- (a) in accordance with directions of the Minister of Agriculture, Fisheries and Food, so far as may be necessary for the purposes of section four of this Act or of any corresponding enactment for the time being in force in Scotland or Northern Ireland,

(b) for the purposes of any proceedings for an offence against the order or any report of those proceedings; and if any person discloses any such particulars or information in contravention of this subsection he shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or both, or on conviction on indictment to imprisonment for a term not exceeding two years, or to a fine not exceeding five hundred pounds, or both.

(4) Section fifty-one of the Patents Act, 1949 (which secures inventions against anticipation in certain cases), shall apply in relation to the disclosure of any invention made in pursuance of an order under this section, and to anything done in consequence of any such disclosure, as it applies in relation to such communications of inventions as are therein mentioned, and to anything done in consequence of such communications.

6.—(1) A person who gives with any food or drug sold by him, or displays with any food or drug exposed by him for sale, a label, whether attached to or printed on the wrapper or container or not, which—

- (a) falsely describes the food or drug, or
(b) is calculated to mislead as to its nature, substance or quality,

shall be guilty of an offence, unless he proves that he did not know, and could not with reasonable diligence have ascertained, that the label was of such a character as aforesaid.

(2) Subject to the next following subsection, a person who publishes, or is a party to the publication of, an advertisement

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(not being such a label so given or displayed by him as aforesaid) which—

- (a) falsely describes any food or drug, or
- (b) is calculated to mislead as to the nature, substance or quality of any food or drug,

shall be guilty of an offence; and in any proceedings under this subsection against the manufacturer, producer or importer of the food or drug, it shall rest on the defendant to prove that he did not publish, and was not a party to the publication of, the advertisement.

(3) In proceedings under the last foregoing subsection it shall be a defence for the defendant to prove either—

- (a) that he did not know, and could not with reasonable diligence have ascertained, that the advertisement was of such a character as is described in that subsection, or
- (b) that, being a person whose business it is to publish, or arrange for the publication of, advertisements, he received the advertisement for publication in the ordinary course of business.

(4) It is hereby declared that, for the purposes of this section, a label or advertisement which is calculated to mislead as to the nutritional or dietary value of any food is calculated to mislead as to the quality of the food.

(5) In proceedings for an offence under this section the fact that a label or advertisement in respect of which the offence is alleged to have been committed contained an accurate statement of the composition of the food or drug shall not preclude the court from finding that the offence was committed.

(6) In this section, except so far as it relates to drugs, references to sale shall be construed as references to sale for human consumption.

Regulations as to labelling and description of food.

7.—(1) Without prejudice to the provisions of the last foregoing section, but subject to the next following subsection, the Ministers may make regulations for imposing requirements as to, and otherwise regulating, the labelling, marking or advertising of food intended for sale for human consumption, and the descriptions which may be applied to such food.

(2) In relation to the labelling and marking of food with respect to weight, measure and number, the last foregoing subsection shall apply with the substitution for the reference to the Ministers of a reference to the Board of Trade.

(3) Regulations made under this section may make provision for any purpose authorised by paragraph (c) of subsection (1) of section four of this Act in the case of regulations under that section.

(4) Regulations made under this section may apply to cream, and to any food containing milk ; but except as aforesaid such regulations shall not apply to milk.

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Food unfit for human consumption

8.—(1) Subject to the provisions of this section, any person who—

Punishment for sale, etc., of food unfit for human consumption.

- (a) sells, or offers or exposes for sale, or has in his possession for the purpose of sale or of preparation for sale, or
- (b) deposits with, or consigns to, any person for the purpose of sale or of preparation for sale,

any food intended for, but unfit for, human consumption shall be guilty of an offence.

(2) Subject as aforesaid, where food in respect of which an offence under paragraph (a) of the foregoing subsection has been committed was sold to the offender by some other person, that person also shall be guilty of an offence.

(3) Where a person is charged with an offence under paragraph (b) of subsection (1) of this section, or under the last foregoing subsection, it shall be a defence for him to prove either—

- (a) that he gave notice to the person with whom he deposited, or to whom he consigned or sold, the food in question that it was not intended for human consumption, or
- (b) that, at the time when he delivered or dispatched it to that person, either it was fit for human consumption or he did not know, and could not with reasonable diligence have ascertained, that it was unfit for human consumption.

(4) If a person licensed under Part IV of this Act, or under the Public Health (London) Act, 1936, to keep a slaughterhouse is convicted of an offence under this section, the court may, in addition to any other punishment, cancel his licence.

(5) The justice of the peace before whom any food is brought under the next following section may, but need not, be a member of the court before which a person is charged with an offence under this section in relation to that food.

9.—(1) An authorised officer of a council may at all reasonable times examine any food intended for human consumption which has been sold, or is offered or exposed for sale, or is in the possession of, or has been deposited with or consigned to, any person for the purpose of sale or of preparation for sale, and, if it appears to him to be unfit for human consumption, may seize it and remove it in order to have it dealt with by a justice of the peace.

Examination and seizure of suspected food.

(2) An officer who seizes any food under the foregoing subsection shall inform the person in whose possession the food was

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found of his intention to have it dealt with by a justice of the peace, and any person who under section eight of this Act might be liable to a prosecution in respect of the food shall, if he attends before the justice upon the application for its condemnation, be entitled to be heard and to call witnesses.

(3) If it appears to a justice of the peace that any food brought before him, whether seized under the provisions of this section or not, is unfit for human consumption, he shall condemn it and order it to be destroyed or to be so disposed of as to prevent it from being used for human consumption.

(4) If a justice of the peace refuses to condemn any food seized under this Part of this Act by an authorised officer of a council, the council shall compensate the owner of the food for any depreciation in its value resulting from its seizure and removal.

Food offered
as prizes, etc.

10.—(1) Sections eight and nine of this Act shall apply—

- (a) in relation to any food which is intended for human consumption and is offered as a prize or reward in connection with any entertainment to which the public are admitted, whether on payment of money or not, as if the food were, or had been, exposed for sale by each person concerned in the organisation of the entertainment;
- (b) in relation to any food which is intended for human consumption and is offered as a prize or reward or given away for the purpose of advertisement, or in furtherance of any trade or business, as if the food were, or had been, exposed for sale by the person offering or giving away the food; and
- (c) in relation to any food which is intended for human consumption and is exposed or deposited in any premises for the purpose of being so offered or given away as aforesaid, as if the food were, or had been, exposed for sale by the occupier of the premises.

(2) In this section the expression “entertainment” includes any social gathering, amusement, exhibition, performance, game, sport or trial of skill.

Power to
examine food
in course of
transit.

11.—(1) Subject to the provisions of this section, if an authorised officer of a council has reason to suspect that any vehicle or container contains any food which is intended for sale for human consumption, or is in the course of delivery after sale for human consumption, he may examine the contents of the vehicle or container, and for that purpose may, if necessary, detain the vehicle or container; and if the officer finds any food which appears to him to be intended for, but unfit for, human consumption, he may deal with it as food falling within subsection (1) of section nine of this Act and subsections (2) to (4) of that section shall apply accordingly.

(2) Nothing in this section shall authorise the detention of—

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- (a) any vehicle belonging to the British Transport Commission and used by them for the purposes of their railway undertaking,
- (b) any vehicle belonging to a railway company and used by them for the purposes of their undertaking, or
- (c) any authorised vehicle used for the purpose of his business as a carrier of goods by a person holding an A licence or a B licence under Part I of the Road and Rail Traffic Act, 1933.

(3) Where the duties of an officer of customs and excise with respect to any goods have not been wholly discharged, nothing in this section shall authorise the examination of those goods without his consent.

12.—(1) No person shall sell, or offer or expose for sale, or have in his possession for the purpose of sale or of preparation for sale, for human consumption any part of, or product derived wholly or partly from, an animal which has been slaughtered in a knacker's yard or of which the carcase has been brought into a knacker's yard. Punishment for sale, etc., of products of knackers' yards.

(2) A person who contravenes the provisions of this section shall be guilty of an offence and, if he is licensed under Part IV of this Act, or under the Public Health (London) Act, 1936, to keep either a slaughterhouse or a knacker's yard, the court may, in addition to any other punishment, cancel his licence.

Hygiene in connection with sale, etc., of food to the public

13.—(1) The Ministers may make such regulations as appear to them to be expedient for securing the observance of sanitary and cleanly conditions and practices in connection with— Regulations as to food hygiene.

- (a) the sale of food for human consumption, or
 - (b) the importation, preparation, transport, storage, packaging, wrapping, exposure for sale, service or delivery of food intended for sale or sold for human consumption,
- or otherwise for the protection of the public health in connection with the matters aforesaid.

(2) Without prejudice to the generality of the foregoing subsection, regulations made under this section may make provision—

- (a) for imposing requirements as to the construction, lay-out, drainage, equipment, maintenance, cleanliness, ventilation, lighting, water-supply and use, of premises in, at or from which food is sold for human consumption,

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- or offered, exposed, stored or prepared for sale, for human consumption (including any parts of such premises in which apparatus and utensils are cleansed, or in which refuse is disposed of or stored) ;
- (b) for imposing requirements as to the provision, maintenance and cleanliness of sanitary and washing facilities in connection with such premises, the disposal of refuse and the maintenance and cleanliness of apparatus, equipment, furnishings and utensils used in such premises, and in particular for imposing requirements that every sanitary convenience situated in such premises shall be supplied with water through a suitable flushing appliance ;
 - (c) for prohibiting or regulating the use of any specified materials, or of materials of any specified class, in the manufacture of apparatus or utensils designed for use in the preparation of food for human consumption, and the sale or importation for sale of apparatus or utensils designed for such use and containing any specified materials, or materials of any specified class ;
 - (d) for prohibiting spitting on premises where food is sold for human consumption, or offered, exposed, stored or prepared for sale for human consumption (including any parts of such premises where apparatus and utensils are cleansed) ;
 - (e) for imposing requirements as to the clothing worn by persons in such premises ;
 - (f) for securing the inspection of animals intended for slaughter, and of carcasses of animals, for the purpose of ascertaining whether meat intended for sale for human consumption is fit for such consumption ;
 - (g) for requiring the staining or sterilization in accordance with the regulations of meat which is unfit for human consumption, or which is derived from animals slaughtered in knackers' yards or from carcasses brought into knackers' yards, or which, though not unfit for human consumption, is not intended therefor ;
 - (h) for regulating generally the treatment and disposal of any food unfit for human consumption ;
 - (i) for prohibiting or regulating, or enabling local authorities to prohibit or regulate, the sale for human consumption, or the offer, exposure or distribution for sale for human consumption, of shellfish taken from beds or other layings for the time being designated by or under the regulations.
- (3) In the last foregoing subsection "animals" includes poultry.

(4) Regulations under this section may make different provisions in relation to different classes of business; and, without prejudice to the foregoing provisions of this section or section one hundred and twenty-three of this Act, any such regulations imposing requirements in respect of premises may—

- (a) impose on the occupier of the premises and, in the case of requirements of a structural character, on any owner of the premises who either lets them for use for a purpose to which the regulations apply or permits them to be so used after notice from the authority charged with the enforcement of the regulations, responsibility for compliance with those requirements;
- (b) provide, subject to such limitations and safeguards as may be specified, for conferring, in relation to particular premises, exemptions from the operation of specified provisions contained in regulations made for the purposes of paragraph (a) or paragraph (b) of subsection (2) of this section while there is in force a certificate of the local authority to the effect that compliance with those provisions cannot reasonably be required with respect to the premises or any activities carried on therein.

(5) If any person who has incurred, or is about to incur, expenditure in securing that the requirements of regulations made under this section, being requirements of a structural character, are complied with in respect of any premises owned or occupied by him claims that the whole or any part of the expenditure ought to be borne by any other person having an interest in the premises, he may apply to the county court, and the court may make such order concerning the expenditure or its apportionment as appears to the court, having regard to all the circumstances of the case, including the terms of any contract between the parties, to be just and equitable; and any order made under this subsection may direct that any such contract as aforesaid shall cease to have effect in so far as it is inconsistent with the terms of the order.

(6) Regulations made under this section may impose in respect of accommodation in home-going ships, and in respect of vehicles, stalls and places other than premises, any such requirements as may be imposed thereunder in respect of premises.

(7) Subject as hereinafter provided, references in this section to food shall be construed as references to food other than milk:

Provided that—

- (a) regulations under this section relating to importation may apply to milk; and

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(b) any regulations under this section may apply to any food containing milk.

(8) The Ministers shall from time to time take such steps as they think expedient for publishing codes of practice in connection with matters which may be made the subject of regulations under this section, for the purpose of giving advice and guidance to persons responsible for compliance with such regulations.

Power of court
to disqualify
caterer.

14.—(1) Where a person is proceeded against by a local authority for an offence against regulations made under section thirteen of this Act in respect of any premises used as catering premises or of any business carried on at such premises, the following provisions of this section shall have effect.

(2) If the person is convicted of the offence and the court thinks it expedient to do so having regard to the gravity of the offence or (in the case of an offence committed in respect of premises) to the unsatisfactory nature of the premises, or having regard to any offences against regulations made under the said section thirteen of which the person has previously been convicted, the court may, on the application of the local authority, make an order disqualifying that person from using those premises as catering premises for such period not exceeding two years as may be specified in the order:

Provided that an order under this section shall not be made against any person unless the local authority have, not less than fourteen days before the date of the hearing, given that person written notice of their intention to apply for an order to be made against him.

(3) A person subject to an order under this section shall be guilty of an offence if, while the order is in force,—

(a) he uses the premises to which the order relates as catering premises, or

(b) he participates in the management of any business in the course of which the premises are so used by another person.

(4) A person so subject may, at any time after the expiration of six months from the date on which the order came into force and from time to time thereafter, apply to the court before which he was convicted, or by which the order was made, to revoke the order, and on any such application the court may, if it thinks proper having regard to all the circumstances of the case, including in particular the person's conduct subsequent to the conviction and any improvement in the state of the premises to which the order relates, grant the application.

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(5) If an application under the last foregoing subsection is refused by the court to which it is made, a further application thereunder shall not be entertained if made within three months after the date of the refusal.

(6) The court to which an application under the said subsection is made shall have power to order the applicant to pay the whole or any part of the costs of the application.

15.—(1) Subject to the provisions of this section, a local authority may make byelaws for securing the observance of sanitary and cleanly conditions and practices in connection with the handling, wrapping and delivery of food sold or intended for sale for human consumption, and in connection with the sale or exposure for sale in the open air of food intended for human consumption. Byelaws as to handling and sale of food.

(2) Byelaws under this section shall not be made by the council of a metropolitan borough or by the overseers of the Inner Temple or the Middle Temple, but may be made by the London County Council so as to apply to the whole or any part of London outside the City; and it shall be the duty of the council of every metropolitan borough and of the said overseers to enforce within their district any byelaws made by the London County Council under this section.

Registration of premises and licensing of vehicles, etc., in connection with sale of food

16.—(1) Subject to the provisions of this section, no premises shall be used for— Registration of premises (manufacture and sale of ice-cream and of sausages, etc.)

(a) the sale, or the manufacture for the purpose of sale, of ice-cream, or the storage of ice-cream intended for sale, or

(b) the preparation or manufacture of sausages or potted, pressed, pickled or preserved food intended for sale,

unless they are registered under this section for that purpose by the local authority.

For the purposes of this subsection—

- (i) "sale" means sale for human consumption, and
- (ii) the preparation of meat or fish by any process of cooking shall be deemed to be the preservation thereof.

(2) A person who uses any premises in contravention of the provisions of subsection (1) of this section shall be guilty of an offence.

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(3) Nothing in this Part of this Act shall apply so as to require the registration under this section of premises used wholly or mainly—

(a) as catering premises, or

(b) as a school or club ;

and paragraph (a) of subsection (1) of this section shall not apply in relation to the sale or storage of ice-cream at any premises used as a theatre, cinematographic theatre, music hall or concert hall.

(4) Save in so far as may be expressly provided by regulations made under this Part of this Act, this section shall not apply in relation to premises which are used for the preparation, sale or storage of articles prepared from, or consisting of, materials other than those of animal or vegetable origin, but are not otherwise used for any purpose in connection with the preparation, storage or sale of food.

(5) Where in any district local Act provisions were in force at the commencement of this Act with respect to the registration of premises used for any of the purposes mentioned in subsection (1) of this section, being provisions which were in force at the commencement of the Food and Drugs Act, 1938 (that is to say, immediately before the first day of October nineteen hundred and thirty-nine), subsection (1) of this section, so far as it relates to registration for purposes regulated by the local Act provisions, shall not apply to that district until the Minister of Health, on the application of the local authority, declares it to be in force therein.

Extension of
s. 16 to other
businesses.

17.—(1) The Ministers may by order direct that section sixteen of this Act shall have effect as if the purposes described in subsection (1) thereof included, except in such cases as may be prescribed by the order, the sale or preparation for sale of food for human consumption, or the storage of food intended for such sale, in the course of any business of a class specified in the order.

(2) An order made under this section—

(a) shall make provision for enabling premises used for purposes for which registration is required by virtue of the order to be registered under the said section sixteen before the date when subsection (1) of that section becomes applicable to them by virtue of the order, and

(b) in relation to premises used for those purposes before that date, shall make provision for excluding or restricting the power of the local authority to refuse applications for registration.

(3) The purposes for which registration is required by virtue of an order made under this section may include any purpose for which, apart from the order, registration would be required under the said section sixteen; and any such order may repeal, in whole or in part, paragraph (a) or (b) of subsection (1) of that section, and may make provision for continuing in force the registration of any premises for purposes to which the order applies.

Where an order made under this section repeals the whole or any part of the said paragraphs, section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), shall apply as if the order were an Act.

(4) If, at the time when premises become registrable for any purposes by virtue of an order made under this section, local Act provisions with respect to the registration of premises used for any of those purposes are in force in any district, subsection (1) of section sixteen of this Act, as having effect by virtue of the order, shall not, so far as it relates to registration for purposes regulated by the local Act provisions, apply to that district until the Minister of Health, on the application of the local authority, declares it to be in force therein.

18.—(1) An application for the registration of any premises under section sixteen of this Act shall specify— Applications
for
registration.

(a) the purpose or purposes for which registration is applied for, and

(b) all rooms or accommodation in the premises proposed to be used for those purposes;

and on such an application being made as aforesaid by the occupier, or a person proposing to occupy, the premises to which the application relates, the local authority shall, subject to the provisions of this and the next following section, register the premises for those purposes.

(2) It is hereby declared that the local authority may register the same premises for more than one purpose for which registration under the said section sixteen is required and may register different parts of the same premises for different purposes.

(3) The premises registered under the said section sixteen in pursuance of such an application as aforesaid shall not include any room or accommodation not specified in the application.

(4) Upon any change in the occupation of premises registered under the said section sixteen, the incoming occupier shall, if he intends to use them for the purpose for which they are registered, forthwith give notice of the change to the local authority, who shall thereupon make any necessary alteration in their register.

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If a person required to give a notice under this subsection fails to do so, he shall be liable to a fine not exceeding five pounds.

Refusal or
cancellation of
registration.

19.—(1) If in the case of any premises in respect of which an application is made for registration under section sixteen of this Act, or which are registered thereunder, it appears to the local authority—

- (a) that the requirements of regulations in force under section thirteen of this Act are not complied with in connection with the premises or the business carried on at the premises, or
- (b) that the premises or any part of the premises are otherwise unsuitable (having regard to considerations of hygiene and in particular to the situation, construction or condition of the premises, or to any activities carried on therein) for use for the purpose or purposes specified in the application, or for which they are used, as the case may be,

the authority may serve on the applicant for registration or, as the case may be, on the occupier of the premises, a notice stating the place and time, not being less than twenty-one days after the date of the service of the notice, at which they propose to take the matter into consideration and informing him that he may attend before them, with any witnesses whom he desires to call, at the place and time mentioned to show cause why the authority should not, for reasons specified in the notice, refuse the application or, as the case may be, cancel the registration of the premises.

(2) A person entitled under the last foregoing subsection to appear before any authority may appear in person or by counsel or a solicitor or any other representative, or may be accompanied by any person whom he may wish to assist him in the proceedings.

(3) If a person on whom a notice is served under subsection (1) of this section fails to show cause to the satisfaction of the local authority, they may refuse the application or, as the case may be, cancel the registration of the premises, and shall forthwith give notice to him of their decision in the matter, and shall, if so required by him within fourteen days from the date of their decision, give to him, not later than forty-eight hours after receiving the requirement, a statement of the grounds on which the decision was based.

(4) A person aggrieved by the decision of a local authority under this section to refuse to register any premises, or to cancel the registration of any premises, may appeal to a magistrates' court.

20. Where on an application made by a local authority under subsection (5) of section sixteen or subsection (4) of section seventeen of this Act the Minister of Health declares subsection (1) of the said section sixteen to be in force in the district of the authority, then, upon the declaration taking effect, such of the local Act provisions referred to in the subsection under which the application was made as may be specified in the declaration shall be repealed or, as the case may be, shall be repealed as respects the district of the authority; but any premises which immediately before the repeal of those provisions were registered thereunder—

PART I
—cont.
Supplementary provisions as to declarations under ss. 16 (5) and 17 (4).

- (a) for any purpose mentioned in subsection (1) of section sixteen of this Act, if the application was made under that section, or
- (b) for any of the purposes for which premises become registrable by virtue of the relevant order made under section seventeen of this Act, if the application was made under that section,

shall be deemed to have been registered under the said section sixteen for the purpose in question.

21.—(1) Subject to the provisions of this section, the Ministers may make regulations providing—

Licensing of vehicles, etc.

- (a) for the issue by local authorities of licences in respect of the use of vehicles, stalls or places other than premises, for the preparation, exposure or offer for sale, or sale, of food for human consumption, and
- (b) for prohibiting the use for any such purpose of any such vehicle, stall or place except in accordance with a licence issued under the regulations.

(2) Regulations made under this section may be made so as to apply either generally or to such class or classes of business as may be specified in the regulations, and may exempt from the requirements of this Act as to registration under section sixteen thereof any premises used for the storage of food intended for sale for human consumption in the course of a business in respect of which a licence is in force under the regulations.

(3) Regulations made under this section may provide for the refusal or cancellation of a licence under the regulations, either wholly or in respect of a part of the business for which the licence is applied for or is held,—

- (a) where the requirements of regulations in force under section thirteen of this Act are not complied with in relation to that business, or

PART I
—cont.

- (b) where the applicant or holder is unable or has failed to comply, in relation to that business, with any bye-laws in force under section fifteen of this Act;

and such regulations shall make provision for affording to persons affected by any such refusal or cancellation an opportunity to make representations to the local authority, and to appeal from the decision of that authority to a magistrates' court.

(4) If on the coming into operation of any regulations under this section in relation to any class of business, local Act provisions are in force in any district, being provisions under which persons engaged in that class of business are required to be licensed or registered, the regulations so far as they relate to that class of business shall not apply to that district until such date as may be appointed by an order made by the Minister of Health upon application in that behalf made by the local authority.

(5) Where an order is made under the last foregoing subsection in relation to any district, that order—

- (a) may repeal any such local Act provisions as are mentioned in that subsection, so far as they relate to that district and to the class of business in relation to which the regulations under this section have effect, and
- (b) shall provide for securing that persons licensed or registered under those provisions are, in relation to any business of the said class in which they are engaged, treated as licensed under the regulations.

Special provisions as to sale, etc., of particular foods

Sale of
ice-cream
from stalls,
etc.

22.—(1) Every dealer in ice-cream who in a street or other place of public resort sells, or offers or exposes for sale, ice-cream from a stall or vehicle, or from a container used without a stall or vehicle, shall have his name and address legibly and conspicuously displayed on the stall, vehicle or container, as the case may be, and, if he fails to comply with the requirements of this section, shall be liable to a fine not exceeding forty shillings.

(2) A local authority may at any time resolve that, as from such date, not being less than four weeks from the date of the passing of the resolution, as may be specified therein and until the resolution is revoked, this section shall apply within their district in relation to all kinds of food, or to any kinds of food specified in the resolution, as it applies in relation to ice-cream, and while any such resolution is in force, this section shall apply accordingly:

Provided that nothing in this subsection shall have effect in relation to milk.

(3) A local authority shall forthwith give notice to the Minister of Health of the passing or revocation of a resolution under this section, and shall take such steps as he may direct for publishing notice of the coming into operation, or revocation, of any such resolution.

23.—(1) Every manufacturer of, or dealer in, ice-cream shall, upon the occurrence of any disease to which this subsection applies among the persons living or working in or about the premises on which the ice-cream is manufactured, stored or sold, forthwith give notice thereof to the medical officer of health of the district and, if he fails to do so, shall be liable to a fine not exceeding five pounds.

Prevention of
spread of
disease by
ice-cream.

(2) Subsection (1) of this section applies to the diseases specified in the First Schedule to this Act and any other disease which the Minister of Health may by order declare to be a disease to which that subsection applies.

(3) If the medical officer of health of a district has reasonable ground for suspecting that any ice-cream, or substance intended for use in the manufacture of ice-cream, is likely to cause any disease communicable to human beings, he may give notice to the person in charge thereof that, until further notice, the ice-cream or substance in question, or any specified portion thereof, is not to be used for human consumption and either is not to be removed, or is not to be removed except to some place specified in the notice.

A person who uses or removes any ice-cream or substance in contravention of the requirements of a notice given under this subsection shall be liable to a fine not exceeding ten pounds.

(4) If on further investigation the medical officer is satisfied that the ice-cream or substance in question may safely be used for human consumption, he shall forthwith withdraw his notice; but, if he is not so satisfied, he shall cause it to be destroyed, and he shall also cause to be destroyed any other ice-cream or such substance as aforesaid then on the premises as to which he is not so satisfied.

(5) Where a notice given under subsection (3) of this section is withdrawn by the medical officer, or the medical officer acting under subsection (4) of this section causes any ice-cream or other substance to be destroyed, the local authority shall compensate the owner of the ice-cream or other substance in question for any depreciation in its value resulting from the action taken by the medical officer or, as the case may be, for the loss of its value:

Provided that—

(a) no compensation shall be payable under this section in respect of the destruction of any ice-cream or substance

PART I
—cont.

if the local authority prove that it was likely to cause any disease communicable to human beings;

(b) no compensation shall in any case be payable under this section—

(i) in respect of any ice-cream or substance manufactured on, or brought within, any premises while a notice given under subsection (3) of this section with respect to anything on those premises was operative, or

(ii) in any case where the owner of the ice-cream or substance in question has failed to give a notice which he was required by subsection (1) of this section to give.

For the purposes of this subsection, the value of any ice-cream or other substance shall not be assessed at a sum exceeding the cost incurred by the owner in making or purchasing it.

**Sale of
horseflesh.**

24.—(1) No person shall sell, or offer or expose for sale, or have in his possession for the purpose of sale, any horseflesh for human consumption elsewhere than in premises, or in a stall, vehicle or place, over or on which a notice in legible letters stating that horseflesh is sold there is displayed in a conspicuous position so as to be visible whenever horseflesh is being sold, or offered or exposed for sale.

(2) No person shall supply horseflesh for human consumption to a purchaser who has not asked to be supplied with horseflesh, or who has asked to be supplied with some compound article of food not ordinarily made of horseflesh.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

(4) If any horseflesh is exposed for sale elsewhere than in premises, or in a stall, vehicle or place, distinguished as aforesaid without anything to show that it was not intended for sale for human consumption, the onus of proving that it was not so intended shall rest upon the person exposing it for sale.

(5) In this section the expression "horseflesh" means the flesh of horses, asses and mules, and includes any such flesh whether cooked or uncooked and whether alone, or accompanied by, or mixed with, any other substance, and the expression "flesh" includes any part of any such animal.

**Cleansing of
shellfish.**

25.—(1) A county council or a local authority may provide, whether within or without their county or district, tanks or other apparatus for cleansing shellfish and may make charges in respect of the use of any tank or other apparatus so provided.

(2) A county council or a local authority may contribute towards the expenses incurred under this section by any other council or any joint committee, or towards expenses incurred by any other person in providing, and making available to the public, means for cleansing shellfish.

(3) Any expenses incurred by a county council under this section shall, if the Minister of Housing and Local Government by order so directs, be defrayed as expenses for special county purposes chargeable upon such part of the county as may be provided by the order, but any such order may be revoked or varied by a subsequent order.

(4) In London, a local authority may, with the consent of the Minister of Housing and Local Government, borrow for the purposes of this section as if they were purposes of the Public Health (London) Act, 1936.

(5) In this section the expression "cleansing shellfish" includes the subjection of shellfish to any germicidal treatment.

(6) Nothing in this section shall authorise the establishment of any tank or other apparatus, or the execution of any other work, on, over or under tidal lands below high-water mark of ordinary spring tides, except in accordance with such plans and sections, and subject to such restrictions and conditions, as may, before the work is commenced, be approved by the Minister of Transport and Civil Aviation.

Food poisoning

26.—(1) If a registered medical practitioner becomes aware, or suspects, that a patient whom he is attending within the district of any local authority is suffering from food poisoning, he shall forthwith send to the medical officer of health of that district a certificate stating—

Cases of food poisoning to be notified.

- (a) the name, age and sex of the patient, and the address of the premises where the patient is, and
- (b) particulars of the food poisoning from which he is, or is suspected to be, suffering,

and also stating whether the case occurs in the private practice of the practitioner, or in his practice as medical officer of a public body or institution.

(2) Where the local authority is not the local health authority, the district medical officer of health shall send a copy of the certificate within twelve hours after its receipt to the local health authority.

PART I
—cont.

(3) A local authority shall pay to a registered medical practitioner for each certificate duly sent by him under the foregoing provisions of this section to their medical officer of health a fee of two shillings and sixpence if the case occurs in his private practice, and a fee of one shilling if it occurs in his practice as medical officer of any public body or institution.

(4) Where the medical practitioner attending a patient is himself the medical officer of health of the district, he shall be entitled to the fee to which, if he were not the medical officer of health, he would have been entitled in respect of a certificate sent by him to the medical officer.

(5) Where a copy of a certificate has been sent to the local health authority under this section, and any fee has been paid for that certificate by the local authority, the fee shall be repaid to the local authority by the local health authority.

(6) Notwithstanding any enactment which in London might entail such a disqualification, the acceptance by a medical practitioner of a fee under this section shall not subject him to disqualification for being a member of any authority, other than a local authority within the meaning of the London Government Act, 1939, or for holding any other public office.

Inspection
and control
of infected
food.

27.—(1) If the medical officer of health of a district has reasonable ground for suspecting that any food of which he, or any other officer of the local authority of the district, has procured a sample under the provisions of this Act is likely to cause food poisoning, he may give notice to the person in charge of the food that, until his investigations are completed, the food, or any specified portion thereof, is not to be used for human consumption and either is not to be removed, or is not to be removed except to some place specified in the notice.

A person who uses or removes any food in contravention of the requirements of a notice given under this subsection shall be liable to a fine not exceeding ten pounds.

(2) If, as a result of his investigations, the medical officer is satisfied that the food in question, or any portion thereof, is likely to cause food poisoning, he may deal with it as food falling within subsection (1) of section nine of this Act and subsections (2) and (3) of that section shall apply accordingly; but, if he is satisfied that it may safely be used for human consumption, he shall forthwith withdraw his notice.

(3) If a notice given under subsection (1) of this section is withdrawn by the medical officer of health, or if the justice of the peace before whom any food is brought under this section refuses to condemn it, the local authority shall compensate the owner of the food to which the notice related for any depreciation in its value resulting from the action taken by the medical officer.

PART II

MILK, DAIRIES AND CREAM SUBSTITUTES

Milk and Dairies

28.—(1) In the following provisions of this Act—

(a) the expression “dairy”—

Meaning
of “dairy”,
“dairy farm”,
etc.

(i) includes any farm, cowshed, milking house, milk store, milk shop or other premises from which milk is supplied on or for sale, or in which milk is kept or used for purposes of sale or for the purposes of manufacture into butter, cheese, dried milk or condensed milk for sale, or in which vessels used for the sale of milk are kept, but

(ii) does not include a shop from which milk is supplied only in the properly closed and unopened vessels in which it is delivered to the shop, or a shop or other place in which milk is sold for consumption on the premises only ;

(b) the expression “dairy farm”—

(i) means any premises (being a dairy) on which milk is produced from cows, but

(ii) does not include any part of any such premises on which milk is manufactured into other products unless the milk produced on the premises forms a substantial part of the milk so manufactured ;

(c) the expression “dairy farmer” means a dairyman who produces milk from cows ; and

(d) the expression “dairyman” includes an occupier of a dairy, a cowkeeper, and a purveyor of milk.

(2) If any question arises under sub-paragraph (ii) of paragraph (b) of the foregoing subsection whether the milk produced on a farm or other premises forms a substantial part of the milk that is manufactured into other products thereon, that question shall be determined by the Minister of Agriculture, Fisheries and Food (hereafter in this Part of this Act referred to as “the Minister”).

29.—(1) The Ministers may make regulations, to be called “Milk and Dairies Regulations”, making provision—

Milk and
Dairies
Regulations.

(a) for the inspection of cattle on dairy farms ;

(b) for the inspection of dairies, and of persons in or about dairies who have access to the milk, or to the churns or other milk vessels ;

(c) with respect to the lighting, ventilation, cleansing, drainage and water-supply of dairies ;

PART II
—cont.

- (d) for securing the cleanliness of churns and other milk vessels and appliances and for prohibiting, subject to prescribed exceptions, the use of churns (whether by the persons to whom they belong or other persons) otherwise than as containers for milk, where the churns are in use for the purposes of the business of a dairyman ;
- (e) for prescribing the precautions to be taken for protecting milk against infection or contamination ;
- (f) for preventing danger to health from the sale of infected, contaminated or dirty milk, and in particular for prohibiting the supply or sale of milk suspected of being infected ;
- (g) for imposing obligations on dairymen and their employees in regard to cases of infectious illness ;
- (h) for regulating the cooling, storage, conveyance and distribution of milk ;
- (j) with respect to the labelling, marking or identification, and the sealing or closing, of churns and other vessels used for the conveyance of milk, the labelling of vessels in which milk is sold or offered or exposed for sale or delivered, and the display of the vendor's name and address on any stall, or any cart, barrow or other vehicle, from which milk is sold or delivered ;
- (k) in cases where no express provision is made by this Act, for prohibiting or restricting—
 - (i) the addition of any substance to milk, or the abstraction from milk of fat or any other constituent ;
 - (ii) the sale of milk to which any such addition, or from which any such abstraction, has been made, or which has been otherwise artificially treated ;
- (l) for prohibiting or restricting, subject to prescribed exceptions, the sale for human consumption, as milk of any specified description (being a description which in the opinion of the Ministers ascribes to the milk a quality higher than the minimum quality prescribed for milk under section thirty-three of this Act) of milk containing less than a specified quantity of any specified normal constituent ;
- (m) for requiring, subject to prescribed exceptions, cream or separated milk to be subjected to a specified treatment before being sold for human consumption ;
- (n) for prohibiting, subject to prescribed exceptions, the sale for human consumption of milk obtained from cows milked—

(i) at any stage of a journey to or from a dairy farm,

(ii) at a slaughterhouse or knacker's yard, or

(iii) in any market or other place where cattle are collected for the purposes of sale or showing, whether or not the market or place is registered in pursuance of Milk and Dairies Regulations as a dairy farm;

(o) for requiring, subject to prescribed exceptions, any milk to which regulations in force under the last foregoing paragraph apply to be stained or otherwise treated for the purposes of identification.

(2) In the foregoing subsection—

(a) "prescribed exceptions" means such exceptions as may be allowed by or under Milk and Dairies Regulations, and

(b) except in paragraph (o), "milk" means milk intended for sale or sold for human consumption, or intended for manufacture into products for sale for human consumption.

(3) Paragraph (m) of subsection (1) of this section, so far as it relates to cream, shall be without prejudice to the power of the Ministers under section four of this Act to make regulations applying to cream, but regulations made under paragraph (j), paragraph (k) or paragraph (l) of the said subsection shall not apply in relation to cream in so far as they are made for any purpose for which regulations relating to cream may be made under the said section four.

(4) Milk and Dairies Regulations may be general regulations or regulations limited to a particular area.

(5) The Minister of Health may, with the approval of the Treasury, repay out of moneys provided by Parliament such part, not exceeding three-quarters, as he may with such approval determine of any sums paid by a local authority by way of compensation to any person for damage or loss sustained by him by reason of any prohibition or restriction imposed by Milk and Dairies Regulations on the sale, supply or use of milk which is infected or suspected of being infected.

30.—(1) Milk and Dairies Regulations—

(a) may provide for the registration of persons carrying on, or proposing to carry on, the trade of a dairyman and for the registration of dairies, and for prohibiting any person from carrying on the said trade unless he and any premises used by him as a dairy are duly registered, and

(b) shall provide for the registration by the Minister of dairy farms and of persons carrying on, or proposing to carry on, the trade of a dairy farmer.

Registration of
dairymen,
dairy farms
and dairy
farmers.

PART II
cont.

(2) Regulations made for the purposes of this section may make special provision—

- (a) for the registration of premises used temporarily as dairies or dairy farms, and of the occupiers of such premises;
- (b) for the removal from the register of such premises and occupiers at the expiration of the period for which the registration is effected.

(3) Part I of the Second Schedule to this Act shall have effect, subject to the provisions of subsection (5) of this section, with respect to refusing or cancelling the registration of dairymen.

(4) Subject to the provisions of the said subsection (5), regulations made for the purposes of paragraph (b) of subsection (1) of this section shall make provision in accordance with Part II of the Second Schedule to this Act for dealing with the refusal and cancellation of any such registration as is mentioned in that paragraph.

(5) The Second Schedule to this Act shall not apply to registration in pursuance of regulations made by virtue of subsection (2) of this section, or to persons registered or applying to be registered thereunder.

Prohibition
of sale of
milk from
diseased
cows.

31.—(1) No person shall—

- (a) sell, or offer or expose for sale, for human consumption, or
- (b) use in the manufacture of products for sale for human consumption,

the milk of any cow which to his knowledge has given tuberculous milk, or is suffering from emaciation due to tuberculosis, or from tuberculosis of the udder or any other disease of cows to which this section applies.

(2) In proceedings under this section, the defendant shall be deemed to have known that a cow had given tuberculous milk, or was so suffering as aforesaid, if he could with ordinary care have ascertained the fact.

(3) A person who contravenes any of the provisions of this section shall be guilty of an offence.

(4) The diseases of cows to which this section applies are those listed in the Third Schedule to this Act and any other disease to which the provisions of this section are extended by Milk and Dairies Regulations.

Adulteration,
etc., of milk.

32.—(1) No person shall add any water or colouring matter, or any dried or condensed milk or liquid reconstituted therefrom, to milk intended for sale for human consumption.

(2) No person shall add any separated milk, or mixture of cream and separated milk, to unseparated milk intended for sale for human consumption.

(3) No person shall sell, or offer or expose for sale, or have in his possession for the purpose of sale, for human consumption any milk to which any addition has been made in contravention of the foregoing provisions of this section.

(4) No person shall sell, or offer or expose for sale, under the designation of milk any liquid in the making of which any separated milk, or any dried or condensed milk, has been used.

(5) A person who contravenes any of the provisions of this section shall be guilty of an offence.

(6) For the purposes of subsection (3) of this section, a person shall be deemed to retain the possession of milk which is deposited in any place for collection until it is actually collected ; but nothing in this subsection shall be taken as prejudicing the defence available under subsection (4) of section ninety-four of this Act to a person charged with an offence in respect of a sample of milk taken after the milk has left his possession.

33. The Ministers may make regulations for determining what Presumptive deficiency in any of the normal constituents of milk, or what evidence of proportion of water, in a sample shall for the purposes of this adulteration of milk. Act raise a presumption, until the contrary is proved, that the article sampled is not genuine milk.

34. The functions of veterinary inspectors under any enact- Appointment ments relating to milk or to dairies shall, in accordance with of veterinary directions given by the Minister, be discharged by veterinary inspectors. inspectors appointed for the purpose by him under section five of the Board of Agriculture Act, 1889.

Special designations of milk, and their use

35.—(1) Provision may be made by regulations, to be made Milk (Special by the Ministers and called "Milk (Special Designation) Designation) Regulations",— Regulations.

(a) for prescribing, in relation to milk of any description, such designation (hereinafter referred to as a "special designation") as the Ministers consider appropriate, and

(b) for the granting of licences to producers and sellers of milk authorising the use of a special designation, and for prescribing the periods for which and the conditions subject to which licences, or licences of any particular class, are to be granted under the regulations.

PART II
—cont.

(2) Provision made by such regulations for the granting of licences authorising the use of a special designation shall be for the granting thereof by the following, that is to say—

- (a) as respects licences authorising the use of a special designation of raw milk by the producer of the milk, the Minister ;
- (b) as respects other licences, either the Minister or county councils or local authorities, as may be provided by the regulations.

(3) The provisions of Part I of the Fourth Schedule to this Act shall have effect with respect to the making by such regulations of provision for—

- (a) the revocation or suspension of licences authorising the use of a special designation on the ground of a breach of condition of the licence ;
- (b) procedure in connection with decisions to revoke or suspend such licences or to refuse grants of such licences.

(4) The conditions prescribed by such regulations subject to which licences may be granted may include conditions as to the payment of fees.

**Restrictions
on use of
special
designations.**

36.—(1) No person shall for the purpose of the sale or advertisement of any milk use a special designation in any manner calculated to suggest that it refers to that milk, unless he holds a licence authorising the use of that designation in connection with that milk :

Provided that, for the purpose of a sale or advertisement of milk as, or as part of, a meal or refreshments, a special designation may be used by a person who does not hold a licence authorising the use of that designation in connection with the milk, if the milk is milk bought by him and that designation was used for the purpose of the sale thereof to him.

(2) No person shall for the purpose of the sale or advertisement of any milk refer to that milk by any such description, not being a special designation, as is calculated falsely to suggest—

- (a) that there is in force a licence authorising the use of a special designation in connection with that milk, or
- (b) that the milk is tested, approved or graded by any competent person, or
- (c) that the cows from which the milk is derived are free from the infection of tuberculosis or of any other disease.

(3) A person who contravenes any of the foregoing provisions of this section shall be guilty of an offence.

(4) In any proceedings taken by virtue of subsection (2) of this section it shall rest on the defendant to prove the truth of any suggestion which, in the opinion of the court, his acts or conduct, as proved by the prosecution, are or is calculated to convey.

(5) Where there has been a breach of a condition subject to which a licence authorising the use of a special designation is granted, but the licence has not been revoked or suspended, the breach shall not be treated as rendering the use of the designation unauthorised for any of the purposes of this section or of any other provision of this Act.

(6) Section forty-six of this Act shall apply for the interpretation of the references in this section to selling milk, but as if the definition of milk in that section were omitted.

Compulsory use of special designations in specified areas, and provisions as to licences for specified areas

37.—(1) Subject to the provisions of this Part of this Act, the use of a special designation shall be obligatory for the purpose of all sales of milk by retail for human consumption (other than catering sales) where the place of sale is in an area in which this subsection is in operation by virtue of the subsequent provisions of this Part of this Act in that behalf.

Compulsory
use of special
designations
for retail sales.

(2) An area in which the foregoing subsection is in operation as aforesaid is in this Part of this Act, and in the Fourth Schedule thereto, referred to as "a specified area".

(3) The use of a special designation shall be obligatory also for the purpose of a sale of milk by retail for human consumption (other than a catering sale), notwithstanding that the place of sale is not in a specified area, if the milk is delivered from an establishment (whether in or outside a specified area) where there is carried on a business of selling milk which includes any sales for the purpose of which the use of a special designation is obligatory by virtue of subsection (1) of this section.

(4) Subsections (1) and (3) of this section shall not apply to the selling of milk as therein mentioned by a producer of milk from cows to persons employed by him in or in connection with such production or employed by him otherwise in agriculture, if he does not engage in any other selling of milk as mentioned in those subsections.

PART II
—cont.

(5) Any person who sells milk without the use of a special designation under a sale for the purpose of which the use of a special designation is obligatory by virtue of this section shall be guilty of an offence.

(6) Section forty-six of this Act shall apply for the interpretation of this and the following eight sections.

**Compulsory
use of special
designations
for catering.**

38.—(1) The provisions of this section shall apply to catering sales, and to sales of milk to a person who carries on a business which consists in or comprises making catering sales (in this section referred to as “a caterer”).

(2) Subject to the provisions of this Part of this Act, a catering sale made in a specified area—

(a) shall be lawful (unless it is for any reason unlawful apart from this subsection) if the caterer bought the milk under a sale for the purpose of which a special designation was used, or if he holds a licence authorising him to use a special designation in connection with the milk, whether the designation is used for the purpose of the catering sale or not, but

(b) otherwise shall be unlawful.

(3) Subject to the provisions of this Part of this Act, on a sale of milk to a caterer, being a sale for the purpose of which the use of a special designation would be obligatory by virtue of section thirty-seven of this Act if it were a sale by retail, the use of such a designation shall be obligatory, except where—

(a) the caterer buys the milk with a view to subjecting it to a process to which milk is required to be subjected as a condition of the use of a special designation in connection therewith, and he is the holder of a licence authorising him to use that designation, or

(b) the caterer buys the milk for the purposes of a business of his as a milk dealer or a manufacturer of milk products other than his business as a caterer.

(4) Any person who makes a catering sale which is unlawful by virtue of subsection (2) of this section, or who sells milk without the use of a special designation under a sale for the purpose of which the use of a special designation is obligatory by virtue of subsection (3) of this section, shall be guilty of an offence:

Provided that a person shall not be guilty of an offence by virtue of subsection (3) of this section if at the time of the sale

in question he had reasonable cause to believe that the conditions specified in paragraph (a) or (b) of that subsection were satisfied as to that sale, or that the buyer was not a caterer.

PART II
—cont.

39.—(1) Notwithstanding anything in subsection (1) or subsection (3) of section thirty-seven of this Act, or in subsection (3) of section thirty-eight thereof, selling milk as therein mentioned without the use of a special designation shall be permissible if done with the consent of the Minister.

Power of
Minister to
dispense with
use of special
designations.

(2) The Minister may give consents for the purposes of this section, either generally as respects selling milk as mentioned in the said subsections or restricted to a particular retailer or establishment or otherwise, and either unconditionally or subject to conditions, as may appear to him to be requisite in order to meet any circumstances in which use of a special designation which would be obligatory by virtue of those subsections apart from the consent appears to him to be for the time being not reasonably practicable.

(3) A catering sale made in a specified area shall not be unlawful by virtue of subsection (2) of section thirty-eight of this Act if the milk was sold to the caterer with consent given by the Minister for the purposes of this section.

40. The special designation "Accredited" shall not be included among the designations which may be used in satisfaction of an obligation to use a special designation subsisting by virtue of this Act.

Abolition of
special
designation
"Accredited".

41.—(1) Subject to the following subsection, subsection (1) of section thirty-seven of this Act shall be in operation in any area in which, immediately before the commencement of this Act, subsection (1) of section nineteen of the Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950, was in operation by virtue of an order made under section twenty-three of that Act.

Specified
areas.

(2) The Ministers may at any time order that subsection (1) of section thirty-seven of this Act shall come into operation in any area in which it is not then in operation, or shall cease to be in operation in any area in which it is then in operation.

(3) Before making an order under this section the Ministers shall consult with such representative organisations as appear to them substantially to represent the interests concerned with the purposes of the order.

(4) For the purposes of this Part of this Act—

(a) if a contract of sale of milk is made in one place and the milk is delivered under the contract in another place,

PART II
—cont.

the place of the sale shall, except in a case falling within paragraph (b) of this subsection, be taken to be the place where the milk is so delivered ;

- (b) if a contract of sale of milk is made in one place and the milk is delivered under the contract to a carrier for transport to another place, the place of the sale shall be taken to be that other place.

Power of
Minister to
provide
facilities for
treatment of
milk.

42.—(1) The Minister may install, maintain and operate apparatus for the subjection of milk to any process to which it is required to be subjected as a condition of the use of a special designation in connection therewith, and may provide any other facilities for that purpose, in any case in which it appears to him, as respects any area which is a specified area, or an area as to which the Ministers propose to make an order bringing subsection (1) of section thirty-seven of this Act into operation, that facilities for the application of such treatment sufficient to provide for supplies of milk of that designation in that area in requisite quantities are not available and are not likely otherwise to become available.

(2) Where the Minister provides facilities under this section, he may either buy the milk to be treated and re-sell it, otherwise than by retail or to a caterer for the purposes of his business as such, after treatment or apply the treatment to milk of others.

(3) The Minister may make arrangements with local authorities or other persons for the doing, on his behalf and at his expense, of things which he is authorised by this section to do, and it shall be within the powers of local authorities to carry out arrangements so made.

(4) In this section the expression "local authority" means a local authority within the meaning of the Local Government Act, 1933, or the London Government Act, 1939.

Breach of
condition of
retailer's
licence.

43.—(1) In the event of a breach of any condition to which this section applies of a licence held by a retailer for a specified area, the holder of the licence shall, subject to the provisions of the next following section, be guilty of an offence under this section.

(2) The conditions to which this section applies are conditions as to any such matters as are specified in the Fifth Schedule to this Act.

(3) Milk (Special Designation) Regulations shall specify the authorities, whether local authorities or food and drugs authorities, by whom the provisions of this section are to be enforced as respects licences other than licences authorising the use of a special designation in relation to raw milk by the producer thereof, or authorising the use of a special designation by a local authority.

(4) In this section the expression "local authority" means a local authority within the meaning of the Local Government Act, 1933, or the London Government Act, 1939.

PART II
—*cont.*

44.—(1) Such a breach of condition as is mentioned in the last foregoing section, constituted by an act or omission for which the holder of the licence is liable to any punishment imposed by or under any enactment other than that section, shall not render the holder of the licence guilty of an offence under that section. Restriction on liability under s. 43.

(2) Such a breach of condition as is mentioned in the last foregoing section shall not render the holder of the licence guilty of an offence under the last foregoing section unless it was the later, or a later, of two or more such breaches, occurring within a period of twelve months, of conditions either of that licence or of that licence and a former licence by way of renewal whereof that licence was granted, and was committed either—

- (a) after the licensing authority had given him notice in writing as to an earlier of those two or more breaches informing him of his being alleged to have committed it, and warning him of the liability to prosecution imposed by the last foregoing section, or
- (b) after he had been convicted of an offence under that section by virtue of an earlier of those two or more breaches.

(3) In the case of any prosecution in respect of such a breach of condition as is mentioned in the last foregoing section which would otherwise render the holder of the licence guilty of an offence under that section, it shall be a defence for him to prove the following matters (either as to that breach, or as to the earlier breach relied on for the purpose of subsection (2) of this section, unless it is one by virtue of which he has been convicted of such an offence), that is to say—

- (a) that neither he nor any servant or agent of his did, or knew of the doing of, any act that constituted the breach or can reasonably be regarded as having been the cause or amongst the causes of it, or omitted to do, or knew of an omission to do, any act the omission whereof constituted the breach or the doing whereof can reasonably be regarded as a precaution that would have prevented it; and
- (b) if the breach was in connection with milk that had been sold to him, or had been delivered to him after being subjected to a process to which it was required to be subjected as a condition of the use of the special designation to which his licence related, that that designation was used for the purpose of the sale to

PART II
—cont.

him or in connection with the delivery to him, as the case may be, and was so used without any breach, discoverable by the exercise of reasonable diligence on the part of himself or any servant or agent of his, of any condition, relating to receptacles, to closing, to fastening or to marking, of a licence to use that designation held by the person who sold the milk to him or subjected it to the process, as the case may be.

**Revocation,
etc.
of licences.**

45. Part II of the Fourth Schedule to this Act shall have effect as respects the application of Part I of that Schedule to a licence held by a retailer for a specified area.

**Interpretation
of ss. 37 to 45.**

46. In sections thirty-seven to forty-five of this Act, in this section and in the Fourth and Fifth Schedules to this Act, except where the context otherwise requires—

“business” includes the business of a hospital, school or other institution whose selling of milk is incidental only to the rendering of the health, education or other services rendered by the institution ;

“catering sale” means a sale of milk, or of things made from milk or of which milk is an ingredient, as, or as part of, a meal or refreshments ;

“licence held by a retailer for a specified area” means a licence authorising the use of a special designation held by a person carrying on a business which includes any sales which are sales for the purpose of which the use of a special designation is obligatory by virtue of this Part of this Act and are of milk in relation to which that licence authorises the use of a special designation ;

“licensing authority” means, in relation to a grant of a licence authorising the use of a special designation, the authority having power to grant the licence by virtue of Milk (Special Designation) Regulations, and, in relation to such a licence which has been granted, the authority who would for the time being have power by virtue of such regulations as aforesaid to grant a licence by way of renewal thereof if it had expired ;

“milk” means cows’ milk, excluding not only condensed milk and dried milk, but also cream and separated, skimmed and evaporated milk, and butter milk ;

“selling” means selling in the course of a business, and includes, in relation to milk, supplying it under arrangements for free supply, and, in relation to milk and things made from milk or of which milk is an ingre-

dient, supplying it or them, in the course of any business otherwise than under such arrangements; and references to sales and contracts of sale and sellers shall be construed accordingly;

PART II
—cont.

“selling milk by retail” means selling it—

(a) to any person other than a milk dealer (that is to say, a person who carries on a business which consists in or comprises the selling of milk) or a manufacturer of milk products (that is to say, a person who carries on a business which consists in or comprises the making of things made from milk or of which milk is an ingredient), or

(b) to such a dealer or manufacturer otherwise than for the purposes of his business as such;

“specified area” has the meaning assigned to it by subsection (2) of section thirty-seven of this Act;

“supplying under arrangements for free supply” means, in relation to any milk, supplying it, free from any payments made or to be made by the person to whom it is supplied, under arrangements made in exercise of powers in that behalf conferred by any Regulation in the Defence (General) Regulations, 1939, or by section forty-nine or subsection (2) of section seventy-eight of the Education Act, 1944; and references to a person’s buying milk include references to his having it supplied to him under such arrangements.

Cream substitutes

47.—(1) Subject to the provisions of this section, no person shall sell, or offer or expose for sale, for human consumption—

(a) any substance which resembles cream in appearance, but is not cream, or

(b) any article of food containing such a substance, under a description or designation which includes the word “cream” (whether or not as part of a composite word).

Misuse of designation “cream” in relation to cream substitutes.

(2) The foregoing subsection shall not apply to the sale, or offer or exposure for sale, of any substance being reconstituted or imitation cream as defined by this section, or of any article containing such a substance, under a description or designation which identifies the substance as such, or to the sale, or offer or exposure for sale, of any substance under a description or designation which indicates that the substance is not for use as, or as a substitute for, cream.

PART II
—cont.

(3) In this section “reconstituted cream” means a substance which, not being cream, resembles cream in appearance and contains no ingredient not derived from milk, except—

(a) water, or

(b) ingredients (not added fraudulently to increase bulk, weight or measure, or conceal inferior quality) which may lawfully be contained in a substance sold for human consumption as cream;

and “imitation cream” means a substance which, not being cream or reconstituted cream, resembles cream in appearance and is produced by emulsifying edible oils or fats with water, either by themselves or with other substances which are neither prohibited by regulations made for the purposes of this section under section four of this Act, nor added in quantities so prohibited.

(4) For the purposes of this section, the description or designation under which a substance or article is sold, or offered or exposed for sale, shall be deemed to include the word “cream” if it includes any other word (composite or otherwise) which is calculated to lead a purchaser to suppose that the substance is or, as the case may be, the article contains either cream or a substance for use as cream.

(5) A person who contravenes subsection (1) of this section shall be guilty of an offence.

Extension to
reconstituted
cream of
provisions
relating
to cream.

48. Save as otherwise expressly provided, such of the following provisions as apply in relation to cream, that is to say—

(a) any provision of this Part of this Act;

(b) any provisions of Milk and Dairies Regulations, other than provisions relating to the registration of dairymen and dairies; and

(c) any provision of Milk (Special Designation) Regulations, shall also apply in relation to reconstituted cream as defined by the last foregoing section.

PART III

PROVISION AND REGULATION OF MARKETS

Establishment
or acquisition
of market by
local authority.

49.—(1) Subject to the provisions of this section, the council of a borough or urban district and, with the consent of the Minister of Housing and Local Government, the council of a rural district may—

(a) establish a market within their district;

(b) acquire by agreement (but not otherwise), either by purchase or on lease, the whole or any part of an existing market undertaking within their district, and

any rights enjoyed by any person within their district in respect of a market and of tolls,

PART III
—contd

and, in either case, may provide—

- (i) a market place with convenient approaches thereto ;
- (ii) a market house and other buildings convenient for the holding of a market.

(2) In this Part of this Act the expression “ market authority ” means a local authority who have established or acquired a market under this section, or under section forty-four of the Food and Drugs Act, 1938, or under any corresponding enactment repealed by that Act, or by the Public Health Act, 1875.

(3) Without the consent of the person concerned, no market shall be established in pursuance of this section so as to interfere with any rights, powers or privileges enjoyed within the district in respect of a market by any person :

Provided that, for the purposes of this subsection, another local authority shall not be deemed to be enjoying any rights, powers or privileges within the district by reason only of the fact that they have established a market within their own district either under paragraph (a) of subsection (1) of this section or under paragraph (i) of subsection (1) of section forty-four of the Food and Drugs Act, 1938, or (otherwise than by acquisition of a then existing market) under any corresponding provision repealed by the said Act of 1938 or the Public Health Act, 1875.

50. The owner of a market undertaking, or of any rights in respect of a market and of tolls, whether established under, or enjoyed by virtue of, statutory powers or not, may sell or lease to a local authority the whole or any part of his market undertaking or rights, but subject to all liabilities attaching thereto :

Power of
owner of
market to sell
it to local
authority.

Provided that a sale by a market company under this section must be authorised,—

- (a) if the company is a company within the meaning of the Companies Act, 1948, by a special resolution of the members passed in the manner provided in Part IV of that Act,
- (b) if the company is not such a company, by a resolution passed by three-fourths in number and value of the members present, either personally or by proxy, at a meeting specially convened for the purpose with notice of the business to be transacted.

51. A market authority may, with the approval of the Minister of Housing and Local Government, appoint the days on which, and the hours during which, markets are to be held.

Markets days
and hours.

PART III

—cont.

Stallages, tolls
and other
charges.

52.—(1) The Minister of Housing and Local Government may, on the application of a market authority, approve for the purposes of the market a table of stallages, tolls and charges, and the authority may demand in respect of the market, and in respect of the weighing and measuring of articles and vehicles, either the stallages, tolls and charges approved by the said Minister, or such less stallages, tolls and charges as they may from time to time determine.

(2) A market authority who provide a weighing machine for weighing cattle, sheep or swine may demand in respect of the weighing of such animals charges not exceeding the following, that is to say—

For every head of cattle 6d.

For every five (or a less number) of sheep or
swine 3d.

or such other charges as the Minister of Housing and Local Government may from time to time approve.

(3) The authority shall keep exhibited in conspicuous places in the market place, and in any market house, tables stating in large and legibly printed characters the several stallages, tolls and charges payable under this Part of this Act, and shall keep so much of the tables as relates to charges payable in respect of the weighing of vehicles, or, as the case may be, in respect of the weighing of animals, conspicuously exhibited at every weighing machine provided by them in connection with the market for the purpose in question.

(4) A person who demands or accepts a stallage, toll or charge greater than that for the time being authorised shall be liable to a fine not exceeding forty shillings.

(5) Nothing in this section shall apply in relation to rents charged by a market authority in respect of the letting of accommodation within their market for any period longer than one week.

Time for
payment of
stallages, etc.

53.—(1) Subject to the provisions of this section, stallages, tolls and charges payable in respect of the market shall be paid from time to time on demand to an authorised market officer.

(2) Charges payable in respect of the weighing or measuring of articles, vehicles or animals shall be paid to an authorised market officer by the persons bringing the articles, vehicles or animals to be weighed or measured before they are weighed or measured.

(3) Tolls payable in respect of animals brought to the market for sale shall be payable, and may be demanded by an authorised market officer, so soon as the animals in respect of which they

PART III
—cont.

are payable are brought into the market place and before they are put into any pen, or tied up in the market place ; but further tolls shall be payable and may be demanded in respect of any of the animals which are not removed within one hour after the close of the market.

(4) In this Part of this Act, the expression “ authorised market officer ” means an officer of a market authority specially authorised by them to collect tolls, stallages, and other charges in their market.

54.—(1) If a person liable to pay any stallage, toll or charge authorised to be taken under this Part of this Act does not pay it when lawfully demanded, the market authority may, by any authorised market officer, levy it by distress of all or any of the animals, poultry or other articles in respect of which the stallage, toll or charge is payable, or of any other animals, poultry or articles in the market belonging to, or in charge of, the person liable. Recovery of stallages, etc.

(2) Any such stallage, toll or charge may also be recovered either summarily as a civil debt, or as a simple contract debt in any court of competent jurisdiction.

55.—(1) Any person, other than a licensed hawker or certificated pedlar, who on a market day and during market hours sells or exposes for sale in any place within the district of the market authority and within such distance from the market as the authority may by byelaw declare, except in his own dwelling place or shop or in, or at the door of, any premises to a person resident therein, any articles specified in the byelaw, being articles commonly sold in the market, shall be liable to a fine not exceeding forty shillings. Certain sales to be prohibited during market hours.

(2) The market authority shall keep exhibited in conspicuous positions in the vicinity of the market notices stating the effect of any byelaw made under this section.

56.—(1) A market authority shall provide sufficient scales, weights, measures and weighing machines for weighing or measuring articles sold in the market and vehicles in which articles are brought for sale in the market, and shall appoint officers to attend to the weighing and measuring of such articles and vehicles. Provision and verification of weighing machines and scales.

(2) A market authority in whose market cattle, sheep or swine are sold shall, unless there is in force an order of the Minister of Agriculture, Fisheries and Food declaring that the circumstances are such as to render compliance with this subsection unnecessary, provide to the satisfaction of that Minister one or more weighing machines adapted for weighing such animals and appoint officers to attend to the weighing of such animals.

PART III
—cont.

A weighing machine provided under this subsection shall for the purposes of section one of the Markets and Fairs (Weighing of Cattle) Act, 1926, be deemed to have been provided for the purpose of complying with the provisions of the principal Act therein referred to.

(3) The authority shall cause all such scales, weights, measures and weighing machines to be verified at least twice in every year by the inspector of weights and measures acting for their district or the area comprising it.

**Weighing of
articles and
vehicles.**

57.—(1) A person selling, or offering for sale, any articles in the market shall, if required so to do by the buyer, cause them to be weighed or measured by the scales and weights or measures provided by the market authority and, if he refuses to do so, shall be liable to a fine not exceeding forty shillings.

(2) The person in charge of any vehicle in which articles are brought for sale in the market shall, on the request of the buyer or seller of the articles, or his agent, take the vehicle with its load to the nearest weighing machine provided by the market authority in connection with the market and permit it to be weighed and, after its load has been discharged, shall, on such request as aforesaid, take it to the weighing machine so provided which is nearest to the place of discharge, and permit it to be re-weighed without its load.

(3) If the person in charge of any such vehicle as aforesaid refuses to comply with the provisions of the last foregoing subsection, or refuses to assist in the weighing of the vehicle, he shall be liable to a fine not exceeding forty shillings.

**Information
as to number,
weight, etc.,
of animals
and articles.**

58. The person in charge of any vehicle in which, and any other person by whom, animals, poultry or other articles are brought for sale in the market shall give to any authorised market officer such information as to their number and kind or, in the case of articles on which tolls are chargeable by reference to weight, as to their weight, as that officer may call for.

**Punishment for
refusal to
weigh.**

59. If an officer appointed by a market authority to attend to the weighing or measuring of articles sold in the market, or of vehicles bringing articles for sale in the market, or of animals brought for sale in the market, refuses or neglects on demand to perform his duties with respect to any such article, vehicle or animal, he shall be liable to a fine not exceeding forty shillings.

**Frauds in
connection
with weighing,
or with tolls.**

60. A person who—

(a) commits any fraud with respect to the weighing or measuring of any article, or the weighing of any vehicle,

whether loaded or unloaded, or the weighing of any animal, for the purposes of the foregoing provisions of this Part of this Act, or with respect to the recording of the weight of any article or of any vehicle or its load, or of any animal, or

(b) with intent to evade payment of the whole or a part of any toll or other charge, gives to an authorised market officer false information as to the number, kind or weight of any animals, poultry or other articles, shall be liable to a fine not exceeding twenty pounds, or to imprisonment for a term not exceeding three months, or to both.

61. A local authority who maintain a market, whether or not they are a market authority within the meaning of this Act, may make byelaws about Byelaws about markets.

- (a) for regulating the use of the market place, and the buildings, stalls, pens and standings therein ;
- (b) for preventing nuisances or obstructions in the market place, or in the immediate approaches thereto ;
- (c) for regulating porters and carriers resorting to the market, and fixing the charges to be made for carrying articles therefrom within the district.

PART IV

SLAUGHTERHOUSES AND KNACKERS' YARDS ; COLD-AIR STORES

Licensing and regulation of slaughterhouses and knackers' yards

62.—(1) It shall not be lawful—

- (a) for the occupier of any premises to use them as a slaughterhouse or knacker's yard, or to permit them to be so used, unless he holds a licence under this Part of this Act authorising him to keep those premises as a slaughterhouse or, as the case may be, a knacker's yard, or
- (b) for any person other than the occupier to use any premises as a slaughterhouse or knacker's yard, unless the occupier of the premises holds in respect thereof such a licence as aforesaid.

Slaughterhouses and knackers' yards to be licensed.

(2) Licences under this Part of this Act shall be granted by the local authority, subject to and in accordance with the provisions of this Part of this Act.

(3) In relation to the use of any premises for or in connection with the slaughter of horses, a licence under this Part of this Act shall be of no effect unless the licence expressly authorises the use of the premises for that purpose.

In this subsection "horse" includes ass and mule.

PART IV
—cont.

(4) A person who uses any premises as a slaughterhouse or knacker's yard in contravention of the provisions of this section, or permits any premises to be so used, shall be guilty of an offence.

**Application
for and grant
of licences.**

63.—(1) Subject to the provisions of this Part of this Act, a local authority on receiving from the occupier of, or a person proposing to occupy, any premises an application for the grant or renewal of a licence authorising him to keep those premises as a slaughterhouse, or as a knacker's yard, may grant or renew to him a licence in respect of those premises:

Provided that the authority shall not grant or renew a licence until an officer of the authority has inspected the premises named in the application and has made a report thereon.

(2) Where any premises used or to be used for the confinement of animals awaiting slaughter in a slaughterhouse or knacker's yard are situated outside the curtilage of the premises used or to be used for the slaughter, separate licences may be granted under this Part of this Act authorising the use of those premises for the purposes of the confinement and the slaughter respectively.

(3) A local authority may require a person who applies for the grant or renewal of a licence under this Part of this Act to give to them, before his application is considered, information as to any other licence in respect of a slaughterhouse or knacker's yard which he holds or has held, either in their district or in the district of another local authority; and if an applicant who is so required gives to the authority any information which is false in a material respect, he shall be guilty of an offence.

**Restriction on
licensing of
new slaughter-
houses.**

64. Notwithstanding anything in this Part of this Act, no slaughterhouse licence shall, except with the consent of the Minister of Agriculture, Fisheries and Food (hereafter in this Part of this Act referred to as "the Minister"), be granted or renewed by a local authority unless the premises in respect of which the application for the grant or renewal is made have previously been used as a slaughterhouse under the authority of a licence under this Part of this Act or, not having been so used,—

- (a) were, at any time when the Food and Drugs Act, 1938, was in force, used as a slaughterhouse under the authority of a licence under section fifty-seven of that Act, or
- (b) were, at any time during the period of five years immediately preceding the commencement of that Act, in use as a slaughterhouse and registered or licensed as such under any enactment repealed by that Act.

65.—(1) Without prejudice to the foregoing provisions of this Part of this Act, a local authority may refuse an application made to them for the grant or renewal of a licence under this Part of this Act in respect of any premises if they are not satisfied that the requirements of—

PART IV
—cont.

Particular
grounds for
refusal of
licence.

(a) any regulations in force under section thirteen of this Act and made for the purposes of paragraphs (a) or (b) of subsection (2) of that section, or

(b) any byelaws made by the authority and in force under section sixty-eight of this Act,

are complied with in respect of those premises, or will be complied with before the date on which the licence or renewed licence comes into force.

(2) Subject to the right of appeal provided for by the next following section, a licence under this Part of this Act shall not be granted or renewed in respect of any premises unless the local authority are satisfied that the requirements of any regulations in force under the Slaughter of Animals (Amendment) Act, 1954, with respect to the construction, lay-out and equipment of premises are complied with in respect of those premises, or will be complied with before the date on which the licence or renewed licence comes into force.

66.—(1) If a local authority refuse to grant, or refuse to renew, a licence under this Part of this Act, they shall forthwith give notice to the applicant of their decision in the matter.

Notification
of, and appeal
against,
refusal of
licence.

(2) A local authority who have given to a person such a notice as aforesaid shall, if so required by him within fourteen days from the date of their decision, give to him, not later than forty-eight hours after receiving the requirement, a statement of the grounds on which their refusal was based.

(3) A person aggrieved by the refusal of a local authority to grant a licence under this Part of this Act, or to renew such a licence, may appeal to a magistrates' court.

(4) For the purposes of this section, a refusal by a local authority—

(a) to grant a licence with an express authorisation under subsection (3) of section sixty-two of this Act, or

(b) to renew a licence with such an authorisation as aforesaid,

shall be treated as a refusal to grant or, as the case may be, as a refusal to renew a licence.

67.—(1) Subject to the provisions of this section, a licence under this Part of this Act shall remain in force for such period not exceeding thirteen months as may be fixed by the local

Duration
of licences.

PART IV
—*cont.*

authority, but may from time to time be renewed by them for a period not exceeding thirteen months at any one time.

(2) Where before the first day of July, nineteen hundred and fifty-six, a licence under this Part of this Act authorising the occupier of any premises to keep them as a slaughterhouse is granted or renewed by a local authority, the period fixed by the authority for the licence to remain in force or, as the case may be, the period for which it is renewed may exceed thirteen months so long as it does not end later than the thirty-first day of July, nineteen hundred and fifty-nine:

Provided that this subsection shall not apply in any case where it appears to the local authority that the premises in respect of which the licence is granted or renewed are, so far as they are to be used for slaughter, to be used wholly or mainly for the slaughter of horses.

Byelaws about slaughterhouses and knackers' yards.

68.—(1) A local authority may, and shall if so required by the Minister, make byelaws—

- (a) for securing that slaughterhouses and knackers' yards are kept in a sanitary condition and are properly managed, and
- (b) requiring a person licensed under this Part of this Act to keep a knacker's yard to keep, and to produce when required, records of animals brought into the yard and of the manner in which those animals and the different parts thereof were disposed of.

(2) Nothing in the Slaughter of Animals Acts, 1933 to 1954, shall be construed as restricting any power to make byelaws under paragraph (a) of the foregoing subsection, or as rendering invalid any byelaws made under section fifty-eight of the Food and Drugs Act, 1938, or under any corresponding enactment repealed by that Act.

(3) If a person convicted of an offence against any byelaw made under this section holds a licence under this Part of this Act, the court may, in addition to any other punishment, cancel the licence.

Signs to be displayed at slaughterhouses and knackers' yards.

69.—(1) The occupier of a slaughterhouse or knacker's yard in respect of which a licence under this Part of this Act is in force shall display in a conspicuous position on the premises a legible notice with the words "Licensed Slaughterhouse" or "Licensed Knacker's Yard", as the case may be.

(2) A person who fails to comply with the provisions of this section shall be liable to a fine not exceeding forty shillings.

PART IV
—cont.*Provision and management of public slaughterhouses*

70.—(1) It shall be the duty of every local authority, if and so far as it appears to them that additional slaughterhouse facilities are required in their district having regard to the reasonable requirements of persons making use of such facilities, to make such use of their powers under any enactment or statutory order as they think expedient for securing the provision of the facilities required.

Functions of local authorities in relation to slaughterhouse accommodation.

(2) In the following provisions of this Part of this Act the expression “slaughterhouse facilities” means facilities for carrying on the activities of a slaughterhouse, including plant and apparatus and the services of persons as slaughtermen or otherwise.

71.—(1) Subject to the provisions of this section, a local authority may provide public slaughterhouses.

Power to provide public slaughterhouses.

(2) Any proposal by a local authority to provide under this section a slaughterhouse within the district of another local authority shall require the consent of that authority; but such consent shall not be unreasonably withheld, and any question whether or not the consent of an authority for the purposes of this subsection is unreasonably withheld shall be referred to and determined by the Minister.

(3) It is hereby declared that the power conferred on local authorities by subsection (1) of this section is exercisable in either of the following ways, that is to say—

- (a) by acquiring (whether by purchase, lease or otherwise) or appropriating land and providing slaughterhouse facilities there, or
- (b) by acquiring (whether by purchase, lease or otherwise) land on which such facilities have been provided by other persons and securing that such facilities continue to be provided there;

and references in this Part of this Act to a local authority providing a slaughterhouse shall be construed accordingly.

(4) Nothing in sections sixty-two to sixty-nine of this Act shall apply in relation to a public slaughterhouse provided by a local authority under this, or any other, Act.

72.—(1) In the case of a public slaughterhouse, a local authority—

Management of public slaughterhouses.

- (a) may, and shall if so required by the Minister, make byelaws for securing that the slaughterhouse is kept in a sanitary condition and is properly managed;

PART IV
—cont.

(b) may provide plant or apparatus for disposing of, treating or processing waste matters, refuse or by-products, resulting from the slaughter of animals in the slaughterhouse ;

(c) subject to the next following subsection, may make such arrangements as they think expedient for securing that all the activities of the slaughterhouse, or any particular activities, are carried on there by servants or agents of theirs to the exclusion of other persons.

(2) A local authority shall not exercise the power conferred by paragraph (c) of the foregoing subsection in such a manner as to deny to any religious community reasonable facilities for obtaining as food the flesh of animals slaughtered by the method specially required by their religion.

(3) In subsection (1) of this section the expression " public slaughterhouse " means a slaughterhouse provided by the local authority under section seventy-one of this Act or under section sixty of the Food and Drugs Act, 1938, and includes—

(a) for the purposes of paragraphs (a) and (b) of that subsection, a public slaughterhouse provided by the authority under any enactment repealed by the said Act of 1938 or by the Public Health Act, 1875, and

(b) for the purposes of paragraph (c) of that subsection, a public slaughterhouse provided by the authority under a local Act or statutory order.

**Charges in
respect of
public
slaughter-
houses.**

73.—(1) Subject to the provisions of this section, a local authority who have provided a public slaughterhouse may make charges, according to scales determined by them from time to time, in respect of the use of the slaughterhouse or of any services provided there.

(2) Every scale of charges determined by a local authority for the purposes of this section shall be published by them in at least one newspaper circulating in their district and in such other manner (if any) as they think expedient for informing persons interested ; and a copy of every scale of charges so published shall be sent by the authority to the Minister.

(3) If it appears to the Minister that a scale of charges determined by a local authority for the purposes of this section is in any respect unreasonable, he may, after consultation with the authority, direct them—

(a) to make such alterations in the scale as he considers appropriate, and

(b) except with his approval, not to depart from the scale as altered for such period as he may specify ;

and the authority shall comply with the direction.

Restriction of private slaughterhouses

PART IV

—cont.

74. A local authority may, with a view to reducing the number of private slaughterhouses,—

Restriction of private slaughterhouses by agreement.

- (a) acquire by agreement any premises in their district which are used as a slaughterhouse and discontinue the use of the premises for that purpose ;
- (b) agree with the persons interested in any premises in the district which are used as a slaughterhouse for the discontinuance of slaughtering on those premises.

75.—(1) Subject to the following provisions of this section, where a local authority—

Compulsory restriction of private slaughterhouses.

- (a) have provided a public slaughterhouse, or
- (b) are of opinion that slaughterhouse facilities in their district ought to be abolished or reduced having regard to the existence of adequate alternative slaughterhouse facilities provided by another authority,

they may by a resolution determine that, after the appointed date for the purposes of their resolution, no fresh slaughterhouse licence shall be granted by them, and that on the said date all slaughterhouse licences then in force shall cease to have effect and shall not be renewable.

(2) A resolution of a local authority under this section shall not have effect until it has been approved by the Minister ; and the appointed date for the purposes of the resolution shall be a date appointed by the Minister if he approves the resolution.

(3) A resolution under this section may exempt from the operation thereof any specified existing slaughterhouse and may reserve power for the local authority, with the approval of the Minister, to grant for special reasons a fresh licence ; and the Minister in approving the resolution may modify it by inserting such an exemption or reservation.

(4) Where a resolution of a local authority under this section has taken effect and any premises used as a slaughterhouse have under the last foregoing subsection been exempted from the operation of the resolution, or the local authority since the passing of the resolution have in the exercise of a power reserved for them under the said subsection granted a fresh licence in respect of any premises in their district, then in neither case shall the authority refuse any subsequent application for the grant or renewal of a slaughterhouse licence in respect of the premises in question, unless—

- (a) the Minister has consented to the refusal ; or
- (b) the authority are not, in relation to the premises, satisfied as mentioned in subsection (1) of section sixty-five of this Act,

PART IV
—*cont.*

and in any case to which paragraph (a) of this subsection applies no appeal against the refusal shall lie under subsection (3) of section sixty-six of this Act.

Resolution
of local
authority
to restrict
future grant
of licences.

76.—(1) Where a local authority are satisfied that the slaughterhouse facilities available in their district are adequate for the time being having regard to the reasonable requirements of persons making use of such facilities, and that no additional facilities are required in the district, they may by a resolution determine that, after the date when the resolution has effect, no slaughterhouse licence will be granted or renewed by them in respect of any premises in their district which were not on that date licensed under this Part of this Act; or that such a licence will be granted or renewed only in special cases and with the consent of the Minister.

(2) A resolution under this section shall not have effect until it has been approved by the Minister.

Publication,
etc., of
resolutions.

77.—(1) So soon as any resolution under section seventy-five or section seventy-six of this Act has been passed, it shall be published in one or more local newspapers circulating in the district and, in the case of a resolution under the said section seventy-five, a copy of the resolution shall be served on every person licensed under this Part of this Act to keep a slaughterhouse within the district.

(2) Before approving any such resolution the Minister shall take into consideration any representation received by him within two months from the date of the first publication of the resolution, and shall not approve the resolution unless he is satisfied that there will be slaughterhouse accommodation adequate to meet the needs of the inhabitants of the district.

(3) The Minister may, in giving or withholding his approval to a resolution of a local authority under either of the said sections, direct the authority to take such steps as he may specify for informing persons interested of the effect of the resolution and his decision thereon, and also, in the case of a resolution under section seventy-five of this Act which he has approved, of the date fixed by him as the appointed date for the purposes thereof; and the authority shall comply with any such direction.

Compensation
for closure.

78.—(1) Where in consequence of a resolution of a local authority having effect under section seventy-five of this Act a slaughterhouse licence in respect of any premises ceases to have effect, any person having an interest in those premises, or in any land held therewith, being an interest of which the value is reduced in consequence of the resolution, shall be entitled to be paid by the authority by way of compensation an amount equal to the reduction.

(2) Where an application for the grant or renewal of a slaughterhouse licence in respect of any premises to which subsection (4) of section seventy-five of this Act applies is refused by a local authority otherwise than on the grounds specified in paragraph (b) of that subsection, any person having an interest in the premises, or in any land held therewith, being an interest of which the value is reduced in consequence of the refusal, shall be entitled to be paid by the authority by way of compensation an amount equal to the reduction.

(3) In ascertaining for the purposes of this section what was at any material time the value of a person's interest in premises or land held therewith, the following provisions shall apply, that is to say:—

- (a) the value of the interest at the material time shall be taken to be the amount which the interest would have realised at that time on a sale thereof in the open market by a willing seller;
- (b) account shall be taken of the value of any plant or machinery, being fixtures, which were on the premises at the said time;
- (c) in relation to the value of the interest before the event giving rise to compensation under this section in respect of that interest, it shall be assumed that the sale referred to in paragraph (a) of this subsection would have been to a purchaser having reason to suppose that an application by him to the local authority for the grant of a slaughterhouse licence in respect of those premises would be granted subject to the premises being, or being rendered, suitable for use as a slaughterhouse;
- (d) subject to paragraph (b) of this subsection, no regard shall be had to goodwill or to any other matter not directly based on the value of the premises or land as such.

(4) Where any dispute arises as to whether compensation is payable to any person under this section, or as to the amount of any such compensation, the dispute shall be referred to and determined by the Lands Tribunal.

(5) Where a local authority have incurred any liability to pay any sums by way of compensation under this section, the Minister may, out of moneys provided by Parliament, make a grant to the authority of an amount not exceeding one half of those sums.

(6) It is hereby declared that a person's entitlement to compensation under this section in respect of any interest of his in premises is not to be treated as taken away by any undertaking not to claim the compensation which may have been given in connection with the grant or renewal of a slaughterhouse licence.

PART IV
—cont.
Special
provisions
where
compensation
payable under
local Act.

79. Where under a local Act a local authority are required to pay or tender compensation in respect of slaughterhouses of any specified class the use of which is rendered unlawful by reason of the provision of a public slaughterhouse by the authority, then for the purposes of that requirement a slaughterhouse which—

(a) immediately before the commencement of the Food and Drugs Act, 1938, was a slaughterhouse of any such class, and

(b) immediately before the commencement of this Act was by virtue of subsection (7) of section sixty-one of that Act deemed to continue to be such a slaughterhouse, shall be deemed to continue to be such a slaughterhouse so long as it remains licensed under this Part of this Act.

Cold-air stores, etc.

Power to
provide cold
stores and
refrigerators.

80.—(1) Subject to the provisions of this section, a local authority who have provided, or are about to provide, a public slaughterhouse or a market, may, with the approval of the Minister, provide a cold-air store or refrigerator for the storage and preservation of meat and other articles of food and may make charges in respect of the use of any such store or refrigerator.

(2) Any proposal by a local authority to provide under this section a cold-air store or refrigerator within the district of another local authority shall require the consent of that authority; but such consent shall not be unreasonably withheld and any question whether or not the consent of an authority for the purposes of this subsection is unreasonably withheld shall be referred to and determined by the Minister.

(3) A local authority who intend to apply for the approval of the Minister under subsection (1) of this section shall, at least one month before making the application, give notice of their intention by advertisement in one or more local newspapers circulating in their district, and, where the consent of the local authority of another district is required, in one or more local newspapers circulating in that district; and the Minister shall consider any objection to the authority's proposals which he may receive within four weeks after the publication of the advertisement from any person appearing to him to be interested, and, in the event of any such objection being received and not withdrawn, shall cause a local inquiry to be held.

Saving

Saving for port
slaughter-
houses and
knackers'
yards.

81. Nothing in this Part of this Act shall apply to any slaughterhouse or knacker's yard forming part of an imported animals' wharf or landing place approved by the Minister under the Diseases of Animals Act, 1950, for the purpose of the landing of imported animals.

PART V

ADMINISTRATION, ENFORCEMENT AND LEGAL PROCEEDINGS

Administration

82.—(1) There shall be constituted a Council, to be called ^{Food Hygiene} the Food Hygiene Advisory Council, which shall consist of a ^{Advisory} chairman appointed by the Ministers and such number of other ^{Council.} members so appointed as the Ministers may determine.

(2) The members of the said Council so appointed shall include—

- (a) persons appearing to the Ministers to be qualified to represent the interests of the public generally in relation to matters of food hygiene and related matters,
- (b) persons appearing to the Ministers to be representative of persons carrying on any of the classes of trade or business affected by the operation of this Act in relation to food, and
- (c) persons appearing to the Ministers to be representative of workers employed in any of the said classes of trade or business ;

and the terms of their appointment shall be such as the Ministers may determine.

(3) The Ministers or either of them may from time to time refer to the said Council for consideration or advice such questions as they think fit, being questions relating to this Act as it applies in relation to food.

(4) Without prejudice to the last foregoing subsection, where the Ministers propose—

- (a) to make any regulations under section seven, section thirteen or section twenty-one of this Act, or
- (b) to make an order under section seventeen of this Act, or
- (c) to publish any such code of practice as is mentioned in subsection (8) of section thirteen of this Act,

they shall (unless it appears to them to be inexpedient to do so having regard to the urgency of the matter) refer the proposals in the form of draft regulations, or a draft order or draft code of practice, or otherwise, to the Food Hygiene Advisory Council for consideration and advice.

(5) The Minister of Health may, out of moneys provided by Parliament, pay to the chairman and other members of the Food Hygiene Advisory Council, and to persons attending meetings at the request of the Council, such allowances as he may, with the approval of the Treasury, determine in respect of travelling and subsistence expenses and in respect of other expenses (if any) necessarily incurred by them for the purpose of enabling them to discharge their functions as members of the Council.

PART V
—cont.

(6) Nothing in this section shall be taken as prejudicing the effect of subsection (6) of section one hundred and twenty-three of this Act.

Food and
drugs
authorities.

83.—(1) Subject to the provisions of this section, the food and drugs authorities for the purposes of this Act shall be as follows, that is to say—

- (a) for the City of London, the Common Council ;
- (b) for every county borough or metropolitan borough, the council of the borough ;
- (c) for every non-county borough or urban district, being a borough or district of which the population, according to the last published census for the time being, is forty thousand or upwards, the council of the borough or district ; and
- (d) for every area within a county for which no other council is for the time being the food and drugs authority, the council of the county.

(2) Where, apart from this subsection, the council of a non-county borough or urban district would become the food and drugs authority for that borough or district in consequence of the publication of any census, and the Minister of Health is satisfied, upon application made by the council of the county in which the borough or district is comprised, that the area or areas in respect of which the last mentioned council would in that event be the food and drugs authority are inconvenient in size, shape or situation for the efficient performance of their duties as such, he may direct that the council of the county shall, so long as the directions remain in force, continue to be the food and drugs authority for the borough or district.

Any directions given by the Minister of Health before the commencement of this Act under paragraph (a) of the proviso to section sixty-four of the Food and Drugs Act, 1938 (which provided, in terms similar to those of this subsection, for the local authority being displaced as food and drugs authority by the county council), shall continue in force and have effect as if given under this subsection.

(3) Where, according to the last published census for the time being, the population of a non-county borough or urban district is less than forty thousand and the Minister of Health is satisfied, upon application made by the council of that borough or district, that it is expedient that that council should continue to be or should become the food and drugs authority for the borough or district, he may, subject to the provisions of subsection (4) of this section, direct that so long as the directions

remain in force that council shall continue to be or, as the case may be, shall be the food and drugs authority for the borough or district.

Any directions given by the Minister of Health before the commencement of this Act under paragraph (b) of the proviso to section sixty-four of the Food and Drugs Act, 1938 (under which a local authority could be made the food and drugs authority for their area, in place of the county council) shall continue in force and have effect as if given under this subsection.

(4) Where according to the last published census for the time being the population of a non-county borough or urban district is less than twenty thousand, no directions shall be given under subsection (3) of this section that the council of the borough or district shall become the food and drugs authority:

Provided that such directions may be given if it appears from any estimate published by the Registrar General that the population of the borough or district is for the time being more than twenty thousand and the Minister of Health thinks it expedient that the council should become the food and drugs authority in advance of the next census.

(5) Where immediately before the publication of any census the council of a non-county borough or urban district were the food and drugs authority for the borough or district (otherwise than in pursuance of directions given by the Minister of Health after the taking of the census and by virtue only of the proviso to the last foregoing subsection) and the population of the borough or district is shown by the census to be less than twenty thousand,—

(a) the council shall cease to be the food and drugs authority, and

(b) any directions in force under subsection (3) of this section in respect of the borough or district shall cease to have effect.

(6) The foregoing provisions of this section shall have effect notwithstanding anything to the contrary in any charter of incorporation granted before the commencement of this Act in the case of a borough, or in any scheme confirmed in connection with the grant of such a charter, under Part VI of the Local Government Act, 1933, or Part XI of the Municipal Corporations Act, 1882.

84.—(1) An application for directions under the last foregoing section, being—

(a) an application under subsection (2) of that section, or

Supplementary provisions as to food and drugs authorities.

PART V
—cont.

- (b) an application under subsection (3) of that section for directions that a council shall continue to be a food and drugs authority,

shall be made before the first day of January next after the expiration of a period of three months from the publication of the relevant census.

(2) Any council who become or cease to be a food and drugs authority under the last foregoing section in consequence of the publication of any census shall become or cease to be such an authority on the first day of April next after the expiration of a period of six months from the publication of the census or, where an application for directions under that section in respect of the borough or district concerned is duly made, on such later date, if any, as the Minister of Health may determine.

(3) Any directions given, or having effect as if given, by the Minister of Health under the last foregoing section may at any time be revoked by that Minister as from such date as he may determine; but except as provided by this subsection and subsection (5) of that section, such directions shall continue in force notwithstanding the publication of any subsequent census in respect of the area to which they relate.

(4) Upon any change in the council who are the food and drugs authority for any borough or district, anything done before the date on which the change takes effect by, to or before the council who were then the food and drugs authority shall have effect for the purposes of this Act as if done by, to or before the council who become the food and drugs authority; and any proceedings under this Act which on that date were pending by or against the first mentioned council may be continued accordingly by or against the second mentioned council, and shall not abate by reason of the change.

(5) For the purposes of the last foregoing section and this section, a census shall be deemed to be published in relation to any borough or district on the date on which the Registrar General, in pursuance of the Census Act, 1920, publishes a report giving the population of that borough or district, not being a report which is, or purports to be, of a provisional nature.

**Local
authorities for
purposes of this
Act.**

85. In this Act, except in sections forty-two and forty-three, the expression "local authority" means—

- (a) as respects the City of London, the Common Council;
- (b) as respects a metropolitan borough, the council of the borough;
- (c) as respects the Inner Temple and the Middle Temple, the respective overseers thereof; and
- (d) as respects any other borough and any urban district or rural district, the council of the borough or district.

86.—(1) Subject to the provisions of this section, the expression “authorised officer”, where used in this Act in relation to a council,—

PART V
—cont.
Meaning of
“authorised
officer”.

- (a) means an officer of the council authorised by them in writing, either generally or specially, to act in matters of any specified kind or in any specified matter, and
- (b) for the purposes of any provision of this Act relating to the taking of samples, includes a police constable so authorised with the approval of the police authority concerned.

(2) The medical officer of health and the sanitary inspector of a council shall by virtue of their appointments be deemed to be authorised officers of the council for all the purposes of this Act.

(3) Any member of the Royal College of Veterinary Surgeons employed by a council for the purpose of the inspection of food shall be deemed to be an authorised officer of the council for the purpose of the examination and seizure of meat under the provisions of Part I of this Act relating to food unfit for human consumption.

(4) No officer of a council shall be authorised under this Act to act in relation to the examination and seizure of meat, unless he is—

- (a) the medical officer of health,
- (b) a sanitary inspector,
- (c) a member of the Royal College of Veterinary Surgeons employed as mentioned in the last foregoing subsection, or
- (d) a person having such qualifications as may be prescribed by regulations made by the Ministers.

87.—(1) It shall be the duty of the authorities specified in the first column of the Sixth Schedule to this Act to secure the enforcement and execution of the provisions which are specified in relation to them respectively in the second column of the said Schedule, being provisions of this Act or of regulations made thereunder.

Authorities
responsible for
enforcement.

(2) It shall be the duty of every local authority to enforce and execute in their district the provisions of any section of this Act with respect to which the duty is not expressly, or by necessary implication, imposed on some other authority.

(3) Regulations made under Part I of this Act, Milk and Dairies Regulations and Milk (Special Designation) Regulations shall specify the authorities by whom they are to be enforced or executed, being—

- (a) in the case of regulations made under Part I of this Act, county councils, local authorities, food and drugs

PART V
—cont.

authorities, port health authorities, the Commissioners of Customs and Excise, or local authorities for the purposes of the Weights and Measures Acts, 1878 to 1936 ;

- (b) in the case of Milk and Dairies Regulations and Milk (Special Designation) Regulations, county councils, local authorities, food and drugs authorities, or port health authorities ;

and any regulations to which this subsection applies may provide for the giving of assistance and information, by any authority concerned in the administration of the regulations, or of this Act, to any other authority so concerned, for the purposes of their respective duties thereunder :

Provided that this subsection shall not apply to the enforcement or execution of so much of any regulations made under Part II of this Act as is, by virtue of subsection (1) of this section, enforceable by the Minister of Agriculture, Fisheries and Food.

Port health
authorities
and joint
boards.

88.—(1) Orders made by the Minister of Health under section three of the Public Health Act, 1936, may assign to a port health authority any of the functions, rights and liabilities of a local authority or food and drugs authority under this Act.

(2) Orders made by the Minister of Housing and Local Government under section six or section eight of the said Act of 1936 may—

- (a) constitute a united district for the purposes of any functions under this Act which are functions of a local authority, whether as a food and drugs authority or otherwise, or
- (b) empower councils of counties and of county boroughs to discharge through a joint board any of their functions, in whatever capacity, under this Act.

(3) Any order made under the Public Health Act, 1936, by virtue of the foregoing provisions of this section may be amended under section nine of the said Act by the Minister by whom it was made, and, for the purposes of section three hundred and eleven of the said Act (which relates to the power of the Public Works Loan Commissioners to lend money to councils) as incorporated in this Act, orders made under that Act by virtue of the foregoing provisions of this section shall be deemed to be made under this Act.

(4) The functions, rights and liabilities which the Minister of Health may by an order under subsection (1) of section six of the Public Health (London) Act, 1936, vest in or impose

on the port health authority of the Port of London shall include any functions, rights and liabilities of a local authority or food and drugs authority under this Act; and the provisions and byelaws which any such order may extend as mentioned in subsection (3) of the said section shall include any of the provisions of this Act which it is the function of a local authority or food and drugs authority to carry into effect; and any byelaws made under any of those provisions, and any order previously made under the said section six may be amended accordingly.

PART V
—cont.

For the purposes of this subsection, the making of byelaws under section fifteen of this Act shall be deemed to be a function of a local authority, notwithstanding that, in relation to parts of London outside the City, byelaws under that section may be made only by the London County Council.

Sampling and analysis

89.—(1) Every food and drugs authority shall appoint in Public accordance with the provisions of this section one or more per- analysts.
sons (in this Act referred to as “public analysts”) to be analysts of food and drugs within their area.

(2) No person shall be appointed a public analyst unless he possesses either the qualifications prescribed by regulations made by the Ministers or such other qualifications as the Ministers may approve, and no person shall be appointed public analyst for any area who is engaged directly or indirectly in any trade or business connected with the sale of food or drugs in that area.

(3) The appointment of a public analyst and the terms of his appointment, and the removal of a public analyst, shall require the approval of the Minister of Agriculture, Fisheries and Food.

(4) A food and drugs authority shall pay to a public analyst such remuneration as may be agreed, which may be expressed to be payable either in addition to any fees received by him under this Part of this Act, or on condition that any fees so received by him are paid over by him to the authority.

(5) A food and drugs authority who appoint only one public analyst may appoint also a deputy to act during any vacancy in the office of public analyst, or during the absence or incapacity of the holder of the office, and—

(a) the foregoing provisions of this section with respect to the qualifications, appointment, removal and remuneration of a public analyst shall apply also in relation to a deputy public analyst, and

(b) any reference in the following provisions of this Act to a public analyst shall be construed as including a reference to a deputy public analyst appointed under this subsection.

PART V
—cont.

Facilities for
examination
of food
and drugs.

90. A county council or local authority may provide facilities for bacteriological and other examinations of samples of food and drugs.

Powers of
sampling.

91.—(1) An authorised officer of a council may exercise such powers of procuring samples for analysis, or for bacteriological or other examination, as are conferred upon him by this section, and any such officer is in this Act referred to as a “sampling officer”.

(2) A sampling officer may purchase samples of any food or drug, or of any substance capable of being used in the preparation of food; but nothing in this subsection shall be construed as authorising any purchase or sale of drugs in contravention of the Dangerous Drugs Act, 1951. or of regulations made thereunder.

(3) Subject to the provisions of this section, a sampling officer may take a sample of any food, or of any substance capable of being used in the preparation of food, which appears to him to be intended for sale, or to have been sold, for human consumption, or is found by him on or in any premises, stall, vehicle, ship, aircraft or place which he is authorised to enter for the purposes of the execution of this Act.

(4) Without prejudice to the last foregoing subsection, a sampling officer—

(a) may take a sample of milk while at any dairy, or while deposited for collection, or at any time before it is delivered to a consumer in pursuance of a sale by retail,

(b) may, at the request of a person to whom any food or substance is, or is to be, delivered in pursuance of a contract of sale, take a sample of that food or substance in the course of delivery, or at the place of delivery.

(5) A sampling officer who under this section takes a sample of the milk of any cows at a dairy may take such steps at the dairy as may be necessary to satisfy himself that the sample is a fair sample of the milk of the cows when properly and fully milked.

(6) Except as provided by subsection (4) of this section, or with the consent of the purchaser, a sampling officer shall not take a sample of any food or substance which appears to him to have been sold by retail, either while the food or substance is in the course of delivery to the purchaser, or at any time after such delivery; and nothing in this section shall authorise a sampling officer to take a sample of any food or substance in a ship (not being a home-going ship) or in any aircraft, other than food imported as part of the cargo of that ship or aircraft.

(7) The powers of taking samples of milk which are conferred on a sampling officer by subsections (3) to (6) of this section shall be exercisable throughout any county by an authorised officer of the county council, whether or not the council is the food and drugs authority for the whole county.

(8) Any power of an authorised officer in respect of procuring samples of milk may be exercised at a place outside the area of the council whose officer he is, if the food and drugs authority of the area within which that place is situated have consented to samples of milk being procured within their area by officers of the first-mentioned council, and, for the purposes of this Act, any samples so procured shall be deemed to have been procured within the area for which the officer in question acts.

A food and drugs authority shall not unreasonably withhold their consent for the purposes of this subsection; and any question whether or not such consent is unreasonably withheld shall be referred to and determined by the Minister of Health.

92.—(1) If a sampling officer who has procured a sample of any food, drug or substance considers that it should be analysed, he shall submit it to be analysed by the public analyst for the area in which the sample was, or is deemed to have been, procured. Right to have samples analysed.

(2) A person, other than a sampling officer, who has purchased any food or drug, or any substance capable of being used in the preparation of food, may submit a sample of it to be analysed by the public analyst for the area in which the purchase was made.

(3) The public analyst shall analyse as soon as practicable any sample submitted to him in pursuance of this section, but may, in the case of a sample submitted by a person not being an officer of the food and drugs authority, demand in advance the payment of such fee as may be fixed by the authority.

(4) If—

(a) the office of public analyst for the area in question is vacant, or

(b) the public analyst determines that he is for any reason unable to perform an effective analysis,

the sample shall be submitted or, as the case may be, sent by the public analyst to whom it was originally submitted, to the public analyst for some other area, and he shall, upon payment to him of such sum as may be agreed, analyse the sample.

(5) A public analyst who has analysed a sample shall give to the person by whom it was originally submitted a certificate specifying the result of the analysis; and any such certificate shall be in a form prescribed by regulations made by the Ministers.

PART V
—cont.

(6) Any certificate of the results of an analysis given by a public analyst in pursuance of this section shall be signed by the public analyst, but the analysis may be made by any person acting under the direction of the analyst.

**Provisions as
to samples
taken for
analysis.**

93.—(1) A sampling officer who purchases or takes a sample of any food, drug or substance for the purpose of analysis by a public analyst shall deal with the sample in accordance with the provisions of Part I of the Seventh Schedule to this Act.

(2) Part I of the said Schedule shall apply to the purchase of samples by any person who is neither a sampling officer nor a person having the powers of a sampling officer as they apply in relation to the purchase of samples by a sampling officer; and references therein to a sampling officer shall be construed accordingly.

(3) If it appears to a sampling officer that any food, drug or substance, of which he has procured a sample for the purpose of analysis by a public analyst, was manufactured or put into its wrapper or container by a person (not being a person to whom one part of the sample is required to be given under Part I of the Seventh Schedule to this Act) having his name and an address in the United Kingdom displayed on the wrapper or container, the officer shall, unless he decides not to have an analysis made, within three days of procuring the sample send to that person a notice informing him that the sample has been procured by the officer and where the sample was taken or, as the case may be, from whom it was purchased.

(4) Where a sample taken or purchased by a sampling officer has been analysed by a public analyst, any person to whom a part of the sample was given under Part I of the Seventh Schedule to this Act shall be entitled, on payment to the authority by whose officer the sample was procured of a fee of one shilling, to be supplied with a copy of the certificate given by the public analyst under subsection (5) of section ninety-two of this Act.

**Special
provisions as
to sampling
of milk and
subsequent
proceedings.**

94.—(1) The provisions of this Act relating to the procuring of samples by a sampling officer, and to proceedings in connection therewith, shall, in relation to milk, have effect subject to the provisions of Part II of the Seventh Schedule to this Act.

(2) Where milk sold or exposed for sale within the area of any council is obtained from a dairy situated outside that area, the medical officer of health or any other authorised officer of the council may by notice in writing to the medical officer of health or other authorised officer of a food and drugs authority

PART V
—cont.

within whose area the dairy is situated, or through whose area the milk is transported, request him to procure samples of the milk, and it shall be the duty of an officer who receives such a notice to procure, as soon as is practicable, samples of the milk in question and to forward those samples to the officer who gave the notice, or to such person as that officer may direct, and, for the purposes of this Act, samples so procured shall be deemed to have been procured within the area for which the last mentioned officer acts.

(3) So much of any contract as requires a purveyor of milk, on a sample of milk being procured under this Act, to send to the person from whom he obtained the milk any part of that sample, or to give to that person notice that a sample has been so procured, shall be void.

(4) It shall be a defence for a person charged with an offence under this Act, or under regulations made thereunder, in respect of a sample of milk taken after the milk has left his possession, to prove that the churn or other vessel in which the milk was contained was effectively closed and sealed at the time when it left his possession, but had been opened before the person by whom the sample was taken had access to it.

95. The powers of sampling officers to take samples under section ninety-one of this Act may be exercised also, in relation to milk—

Power of
Minister's
inspectors to
take samples of
milk.

- (a) in any case, by an inspector of the Minister of Agriculture, Fisheries and Food; and
- (b) for purposes connected with the enforcement of any provisions which, by virtue of subsection (1) of section eighty-seven of this Act, are enforceable by the said Minister, by an authorised officer of his;

and references to a sampling officer in subsection (6) of the said section ninety-one, in section ninety-three of this Act, and in Part I of the Seventh Schedule thereto, shall be construed accordingly.

96.—(1) The Minister of Agriculture, Fisheries and Food may, in relation to any matter appearing to him to affect the general interests of consumers or the general interests of agriculture in the United Kingdom, direct an officer of his department to procure samples of any specified food, and thereupon the officer shall have all the powers of a sampling officer, and this Act shall apply as if he were a sampling officer, except that—

Power of
Minister to
have foods
analysed and
examined.

- (a) if he intends to submit any sample procured by him to be analysed, he shall divide it into four parts, and shall

PART V
—cont.

deal with three of those parts in the manner directed by Part I of the Seventh Schedule to this Act, and send the fourth part to the said Minister, and

- (b) any fee for analysis shall be payable to the analyst by the food and drugs authority of the area in which the sample is procured.

(2) The Minister of Agriculture, Fisheries and Food shall communicate the result of the analysis of any such sample to the food and drugs authority, and thereupon the authority shall have the like duty to cause proceedings to be taken as if one of their officers had procured the sample and sent it to be analysed.

Provision as to cases in which division of sample into parts is impracticable.

97. Where any person procures a sample consisting of a food, drug or substance contained in unopened containers, and the division into parts of the food, drug or substance contained in those containers—

- (a) is not reasonably practicable, or
(b) might affect the composition, or impede the proper analysis, of the contents,

the provisions of Part I of the Seventh Schedule to this Act, or of section ninety-six of this Act, as the case may be, with respect to the division of samples into parts shall be deemed to be complied with if the person procuring the sample divides the containers into the requisite number of lots and deals with each lot as if it were a part in the manner provided by those provisions; and references in this Act to a part of a sample shall be construed accordingly.

Examination by local authorities of food not for sale.

98. A local authority may, at the request of a person who has in his possession any food which has not been sold and is not intended for sale, and on payment by that person of such fee, if any, as may be fixed by the authority, arrange to have the food examined.

Quarterly reports of analysts.

99.—(1) Every public analyst shall, as soon as may be after the last day of March, the last day of June, the last day of September and the last day of December in every year, report to the authority by whom he was appointed the number of articles which have been analysed by him under this Act in his capacity of public analyst for their area during the preceding quarter of a year and the result of each analysis.

(2) Every food and drugs authority shall transmit to the Minister of Agriculture, Fisheries and Food, at such time as he may direct, a copy of each quarterly report received by them from a public analyst.

Enforcement

PART V

—cont.

Power to enter premises.

100.—(1) Subject to the provisions of this section, an authorised officer of a council shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter any premises at all reasonable hours—

- (a) for the purpose of ascertaining whether there is or has been on, or in connection with, the premises any contravention of the provisions of this Act or of any regulations or byelaws made thereunder, being provisions which the council are required or empowered to enforce, and
- (b) generally for the purpose of the performance by the council of their functions under this Act or any such regulations or byelaws :

Provided that admission to any premises used only as a private dwelling-house shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) If a justice of the peace, on sworn information in writing,—

- (a) is satisfied that there is reasonable ground for entry into any premises for any such purpose as aforesaid, and
- (b) is also satisfied either—

- (i) that admission to the premises has been refused, or a refusal is apprehended and that notice of the intention to apply for a warrant has been given to the occupier, or

- (ii) that an application for admission, or the giving of such a notice, would defeat the object of the entry, or that the case is one of urgency, or that the premises are unoccupied or the occupier temporarily absent,

the justice may by warrant under his hand authorise the council by any authorised officer to enter the premises, if need be by force.

(3) An authorised officer entering any premises by virtue of this section, or of a warrant issued thereunder, may take with him such other persons as may be necessary, and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectively secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force for a period of one month.

PART V
—CONT.

(5) If any person who, in compliance with the provisions of this section, or of a warrant issued thereunder, is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret, he shall, unless the disclosure was made in the performance of his duty, be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

(6) Nothing in this section shall authorise any person, except with the permission of the local authority under the Diseases of Animals Act, 1950, to enter any cowshed or other place in which an animal affected with any disease to which that Act applies is kept and which is situated in a place declared under that Act to be infected with such a disease.

(7) This section shall not apply in relation to the enforcement of regulations made by the Board of Trade under section seven of this Act.

Power to enter
ships, aircraft,
vehicles, etc.

101.—(1) An authorised officer of a council shall, on producing, if so required, some duly authenticated document showing his authority, have a right at all reasonable hours—

(a) to enter any ship or aircraft for the purpose of ascertaining whether there is in the ship or aircraft any food imported as part of the cargo in contravention of the provisions of regulations made under Part I of this Act, being provisions which the council are required or empowered to enforce, and

(b) to enter any vehicle, stall or place other than premises, or any home-going ship, for any purpose for which he is empowered under the last foregoing section to enter premises.

(2) Subsections (2) to (4) of the last foregoing section shall apply in relation to any ship, aircraft, vehicle, stall or place which may be entered under the powers conferred by the foregoing subsection as they apply in relation to premises, and as if any reference to the occupier of premises were a reference to the master, commander or other person in charge of the ship, aircraft, vehicle, stall or place.

(3) This section shall not apply in relation to the enforcement of regulations made by the Board of Trade under section seven of this Act.

Powers of
inspectors of
weights and
measures.

102. Section ten of the Sale of Food (Weights and Measures) Act, 1926 (which confers special powers of entry and inspection on inspectors of weights and measures), shall apply as if references therein to the said Act of 1926 and to its requirements

included references respectively to regulations made by the Board of Trade under section seven of this Act and to the requirements of such regulations.

PART V
—cont.

103.—(1) An inspector or authorised officer of the Minister of Agriculture, Fisheries and Food and an authorised officer of the Minister of Health shall, for the purpose of ascertaining whether there is or has been any contravention of the provisions of this Act or of any regulations or order made thereunder, being provisions which the Minister in question is required or empowered to enforce, have the powers of entry specified in the following subsection; and an inspector or authorised officer of the Minister of Agriculture, Fisheries and Food shall have the said powers for the purpose of taking any sample of milk under section ninety-five of this Act.

Powers of
entry of
Ministers'
officers.

(2) The powers of entry referred to in the foregoing subsection are the like powers of entry as are exercisable under section one hundred or one hundred and one of this Act by an authorised officer of a council; and in relation to an inspector or officer to whom the said subsection applies, the reference in subsection (2) of section one hundred of this Act to the council shall be construed as a reference to the Minister of Agriculture, Fisheries and Food or the Minister of Health, as the case may be.

104.—(1) Without prejudice to any power of examining food which may be conferred by regulations made under Part I of this Act, an authorised officer of a port health authority into whose district any food has been imported with a view to sale for human consumption may give directions to the person in possession of the food prohibiting or restricting its removal or delivery—

Restriction on
movement of
imported food.

(a) during any period not exceeding forty-eight hours, and

(b) if within that period the officer so requires, until that person has notified the officer of the name of the person to whom, and the address to or at which, he proposes to send or deliver the food.

(2) The power conferred by the foregoing subsection on an authorised officer of a port health authority shall be exercisable also, in relation to an area not forming part of a port health district, by an authorised officer of a local authority or county council.

(3) A person who fails to comply with any direction given under subsection (1) of this section, or who in a notification thereunder knowingly makes any misstatement, shall be guilty of an offence; and subsection (3) of the next following section shall not apply.

PART V
—cont.Persons
obstructing
execution of
Act.

105.—(1) A person who wilfully obstructs any person acting in the execution of this Act, or of any regulation, byelaw, order or warrant made or issued thereunder, shall be liable to a fine not exceeding five pounds:

Provided that, if the court is satisfied that he committed the offence with intent to prevent the discovery of some other offence under this Act, or if he has within the twelve months last preceding been convicted of an offence under this subsection, he shall be liable to a fine not exceeding twenty pounds or to imprisonment for a term not exceeding one month.

(2) If—

(a) a sampling officer applies to purchase any food, drug or substance exposed for sale, or on sale by retail, and tenders the price for the quantity which he requires as a sample, and the person exposing the food, drug or substance for sale, or having it for sale, refuses to sell to the officer such quantity thereof as aforesaid, or

(b) the seller or consignor of any article or substance of which an officer has power to take a sample, or a person having the charge for the time being of such an article or substance, refuses to allow the officer to take the quantity which he requires as a sample,

then, in any of the cases mentioned in the foregoing paragraphs, the person concerned shall be treated for the purposes of subsection (1) of this section as having wilfully obstructed the officer:

Provided that, where any food, drug or substance is exposed for sale in an unopened container duly labelled, no person shall be required to sell it except in the unopened container in which it is contained.

(3) A person who fails to give to any person acting in the execution of this Act, or of any regulation, byelaw, order or warrant made or issued thereunder, any assistance which that person may reasonably request him to give, or any information which that person is expressly authorised by this Act to call for or may reasonably require, or who, when required to give any such information, knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding five pounds:

Provided that nothing in this subsection shall be construed as requiring a person to answer any question or give any information, if to do so might incriminate him.

(4) The last foregoing subsection shall be without prejudice to so much of section one hundred and twenty-three of this Act as enables regulations made under this Act, or an order made under section five thereof, to contain provisions for imposing penalties on persons offending against the regulations or order.

*Legal Proceedings***PART V**
—cont.

106. A person guilty of an offence under this Act shall, unless a special punishment for that offence is provided by this Act, be liable to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both, and, in the case of a continuing offence, to a further fine not exceeding five pounds for each day during which the offence continues after conviction. Punishment of offences.

107.—(1) Where an offence under this Act, or any regulations or order made under this Act, which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer, of the body corporate, or any person who was purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly. Offences by corporations.

(2) In the foregoing subsection the expression “director”, in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by the members thereof, means a member of that body corporate.

108.—(1) Subject to the provisions of this Act, all offences under this Act and regulations and byelaws made thereunder, and any offence against an order made under section five of this Act, shall be punishable on summary conviction: Prosecutions.

Provided that, notwithstanding anything in the Magistrates’ Courts Act, 1952,—

(a) where a sample has been procured under this Act, no prosecution in respect of the article or substance sampled shall be begun after the expiration of the following period, beginning with the date on which the sample was procured, that is to say—

(i) in the case of a sample of milk, twenty-eight days,

(ii) in any other case, two months, unless the justice of the peace before whom the information is laid, on being satisfied on oath that having regard to the circumstances of the particular case it was not practicable to lay the information at an earlier date, gives a certificate to that effect; and, if the prosecution is in respect of a sample of milk, it shall not in any case be begun after the expiration of forty-two days beginning with the said date;

PART V
—cont.

- (b) the time within which proceedings may be commenced under section one hundred and sixteen of this Act in respect of the giving of a false warranty shall, instead of being six months in accordance with section one hundred and four of the Magistrates' Courts Act, 1952, be twelve months.

(2) Where a sample has been procured under this Act, any proceedings in respect of the article or substance sampled shall be taken before a court having jurisdiction in the place where the sample was procured:

Provided that—

- (a) where a sample procured within one area is for the purposes of this Act deemed to have been procured within another area, proceedings may, at the option of the prosecutor, be taken either before a court having jurisdiction in the area within which the sample was procured, or before a court having jurisdiction in the area within which it is deemed to have been procured; and
- (b) where the article or substance sampled was sold and actually delivered to the purchaser, proceedings may, if the prosecutor so elects, be taken before a court having jurisdiction at the place of delivery.

(3) In any proceedings under this Act in respect of an article or substance sampled, the summons shall not be made returnable less than fourteen days from the day on which it is served, and a copy of any certificate of analysis obtained on behalf of the prosecutor, and of any certificate given by a justice under paragraph (a) of the proviso to subsection (1) of this section, shall be served with the summons.

(4) In any proceedings under this Act, where a sample has been procured in such circumstances that its division into parts is required by this Act, the part of the sample retained by the person who procured it shall be produced at the hearing.

Institution of
proceedings by
Government
departments
and councils.

109.—(1) Without prejudice to their powers of enforcement under any provision of this Act, the authorities specified in the first column of the Eighth Schedule to this Act may, where they are of opinion that the general interests of consumers are affected, institute proceedings for any of the offences specified in relation to them respectively in the second column of the said Schedule; but except as otherwise expressly provided by this Act, proceedings shall not be instituted by any of the said authorities for an offence against any such provisions of this Act, or of any regulations made thereunder, as it is the duty of any council to execute and enforce.

(2) Subject to the next following subsection, a county council or local authority may institute proceedings under any section of, or regulation made under, this Act, notwithstanding that they are not the authority charged with the execution and enforcement thereof:

PART V
—cont.

Provided that—

- (a) a council or local authority shall not have power by virtue of this subsection to institute proceedings against any person for contravening or failing to comply with any Milk and Dairies Regulations which, by virtue of subsection (1) of section eighty-seven of this Act, are enforceable by the Minister of Agriculture, Fisheries and Food;
 - (b) no council other than a local authority for the purposes of the Weights and Measures Acts, 1878 to 1936, shall institute proceedings for an offence against regulations made by the Board of Trade under section seven of this Act.
- (3) Proceedings shall not be instituted by a council—
- (a) for an offence under section six of this Act, so far as it relates to food,
 - (b) except so far as may be otherwise provided by regulations made by the Ministers under section seven of this Act, for an offence against any provisions of those regulations,

unless they have given to the Minister of Agriculture, Fisheries and Food not less than fourteen days' notice of their intention to institute the proceedings, together with a summary of the facts upon which the charges are founded.

A certificate of the Minister of Agriculture, Fisheries and Food that the requirements of this subsection have been complied with in relation to any proceedings shall be conclusive evidence that they have been complied with in relation thereto; and any document purporting to be such a certificate as aforesaid and to be signed by or on behalf of the said Minister shall be deemed to be such a certificate, unless the contrary is shown.

110.—(1) In any proceedings under this Act, the production of a document purporting to be a certificate of a public analyst in the form prescribed under subsection (5) of section ninety-two of this Act, or of a document supplied to him by the other party as being a copy of such a certificate, shall be sufficient evidence of the facts stated therein, unless, in the first-mentioned case, the other party requires that the analyst shall be called as a witness.

PART V
—cont.

(2) In any such proceedings, if a sample of milk has been taken by an officer of one authority at the request of an officer of another authority, a document purporting to be a certificate signed by the officer who took the sample and stating that the provisions of this Act with respect to the manner in which samples are to be dealt with were complied with shall, if a copy thereof has been served on the defendant with the summons, be sufficient evidence of compliance with those provisions, unless the defendant requires that the officer shall be called as a witness.

(3) In any such proceedings, if a defendant intends to produce a certificate of a public analyst, or under subsection (1) of this section to require that a public analyst shall be called as a witness, or under subsection (2) of this section to require that a sampling officer shall be called as a witness, notice of his intention, together, in the first-mentioned case, with a copy of the certificate, shall be given to the other party at least three clear days before the day on which the summons is returnable, and, if this requirement is not complied with, the court may, if it thinks fit, adjourn the hearing on such terms as it thinks proper.

(4) Regulations made under section four or section seven of this Act may prescribe a method of analysis for the purpose of ascertaining the presence in, or absence from, any food of any substance specified in the regulations, or the quantity of any such substance which is present in any food; and in any proceedings under this Act—

(a) for a contravention of any regulations made under either of the said sections, or

(b) for an offence under section two or section six of this Act,

in respect of any food alleged to contain, or not to contain, any substance specified as aforesaid or any particular quantity of such a substance, evidence of an analysis carried out by the prescribed method shall be preferred to evidence of any other analysis or test.

Presumptions.

111. For the purposes of this Act and of any regulations or byelaws made thereunder—

(a) any article commonly used for human consumption shall, if sold or offered, exposed or kept for sale, be presumed, until the contrary is proved, to have been sold or, as the case may be, to have been or to be intended for sale, for human consumption;

(b) any article commonly used for human consumption which is found on premises used for the preparation, storage, or sale of that article and any article commonly used in the manufacture of products for human consumption which is found on premises used for the

preparation, storage or sale of those products, shall be presumed, until the contrary is proved, to be intended for sale, or for manufacturing products for sale, for human consumption ;

PART V
—cont.

- (c) any substance capable of being used in the composition or preparation of any article commonly used for human consumption which is found on premises on which that article is prepared shall, until the contrary is proved, be presumed to be intended for such use.

112.—(1) The court before which any proceedings are taken under this Act may, if it thinks fit, and upon the request of either party shall, cause the part of any sample produced before the court under subsection (4) of section one hundred and eight of this Act to be sent to the Government Chemist, who shall make an analysis and transmit to the court a certificate of the result thereof, and the costs of the analysis shall be paid by the prosecutor or the defendant as the court may order.

Power of
court to
require
analysis by
Government
Chemist.

(2) If, in a case where an appeal is brought, no action has been taken under the foregoing subsection, the provisions thereof shall apply also in relation to the court by which the appeal is heard.

(3) Any certificate of the results of an analysis transmitted by the Government Chemist under this section shall be signed by or on behalf of the Government Chemist, but the analysis may be made by any person acting under the direction of the person by whom the certificate is signed ; and any certificate so transmitted by the Government Chemist shall be evidence of the facts stated therein unless any party to the proceedings requires that the person by whom it is signed shall be called as a witness.

113.—(1) A person against whom proceedings are brought under this Act shall, upon information duly laid by him and on giving to the prosecution not less than three clear days' notice of his intention, be entitled to have any person to whose act or default he alleges that the contravention of the provisions in question was due brought before the court in the proceedings ; and if, after the contravention has been proved, the original defendant proves that the contravention was due to the act or default of that other person, that other person may be convicted of the offence, and, if the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with, he shall be acquitted of the offence.

Contravention
due to default
of some other
person.

(2) Where a defendant seeks to avail himself of the provisions of the foregoing subsection—

- (a) the prosecution, as well as the person whom the defendant charges with the offence, shall have the right

PART V
—cont.

to cross-examine him, if he gives evidence, and any witness called by him in support of his pleas, and to call rebutting evidence ;

- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(3) Where it appears to the authority concerned that an offence has been committed in respect of which proceedings might be taken under this Act against some person and the authority are reasonably satisfied that the offence of which complaint is made was due to an act or default of some other person and that the first-mentioned person could establish a defence under subsection (1) of this section, they may cause proceedings to be taken against that other person without first causing proceedings to be taken against the first-mentioned person.

In any such proceedings the defendant may be charged with, and, on proof that the contravention was due to his act or default, be convicted of, the offence with which the first-mentioned person might have been charged.

Contraventions
originating
in Scotland
or Northern
Ireland.

114.—(1) Where proceedings are brought against any person (hereafter in this section referred to as “the defendant”) in respect of a contravention of any provisions of this Act, or of regulations made thereunder, and it is proved—

- (a) that the contravention was due to the act or default of some other person, being an act or default which took place in Scotland or Northern Ireland, and
(b) that the defendant used all due diligence to secure compliance with the said provisions,

the defendant shall, subject to the provisions of this section, be acquitted of the offence.

(2) The defendant shall not be entitled to be acquitted under this section unless within seven days from the date of the service of the summons on him he has given notice in writing to the prosecution of his intention to rely upon the provisions of this section, specifying the name and address of the person to whose act or default he alleges that the contravention was due, and has sent a like notice to that person.

(3) The person specified in a notice served under this section shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(4) Where it is proved that the contravention of the provisions in question was due to the act or default of some person other than the defendant, being an act or default which took place in Scotland or Northern Ireland, the court shall (whether or not the defendant is acquitted) cause notice of the proceedings to be sent

to the authority concerned with the purposes of this section, the said authority being—

PART V
—cont.

- (a) in the case of a contravention committed in respect of a drug, the Minister of Health ;
- (b) in the case of a contravention of regulations made by the Board of Trade, that Board ; and
- (c) in any other case, the Minister of Agriculture, Fisheries and Food.

115.—(1) Subject to the provisions of this section, in any proceedings for an offence under this Act or any regulations made thereunder, being an offence consisting of selling, or offering, exposing or advertising for sale, or having in possession for the purpose of sale, any article or substance, it shall be a defence for the defendant to prove—

Conditions under which warranty may be pleaded as defence.

- (a) that he purchased it as being an article or substance which could lawfully be sold or otherwise dealt with as aforesaid, or, as the case may be, could lawfully be so sold or dealt with under the name or description or for the purpose under or for which he sold or dealt with it, and with a written warranty to that effect, and
- (b) that he had no reason to believe at the time of the commission of the alleged offence that it was otherwise, and
- (c) that it was then in the same state as when he purchased it.

(2) A warranty shall only be a defence in proceedings under this Act if—

(a) the defendant—

(i) has, not later than three clear days before the date of the hearing, sent to the prosecutor a copy of the warranty with a notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it, and

(ii) has also sent a like notice of his intention to that person, and

(b) in the case of a warranty given by a person resident outside the United Kingdom, the defendant proves that he had taken reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained therein, and

(c) in the case of a prosecution in respect of a sample of milk procured from him, the defendant either—

(i) has within sixty hours after the sample was procured served such a notice as is mentioned in paragraph 12 of the Seventh Schedule to this Act, or

PART V
—cont.

(ii) not having served such a notice, proves that he had reasonable cause to believe that such a notice would have been of no effect by reason of the fact that the milk in question was a mixture of milk produced on more than one dairy farm.

(3) Where the defendant is a servant of the person who purchased the article or substance under a warranty, he shall be entitled to rely on the provisions of this section in the same way as his employer would have been entitled to do if he had been the defendant.

(4) The person by whom the warranty is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(5) For the purposes of this and the next following section, a name or description entered in an invoice shall be deemed to be a written warranty that the article or substance to which the entry refers can be sold or otherwise dealt with under that name or description by any person without contravening any of the provisions of this Act or of regulations made thereunder.

Offences in
relation to
warranties and
certificates
of analysis.

116.—(1) A defendant who in any proceedings under this Act wilfully applies to any article or substance a warranty or certificate of analysis given in relation to any other article or substance shall be guilty of an offence.

(2) A person who, in respect of any article or substance sold by him, being an article or substance in respect of which a warranty might be pleaded under section one hundred and fifteen of this Act, gives to the purchaser a false warranty in writing, shall be guilty of an offence, unless he proves that when he gave the warranty he had reason to believe that the statements or description contained therein were accurate.

(3) Where the defendant in a prosecution under this Act relies successfully on a warranty given to him or to his employer, any proceedings under subsection (2) of this section in respect of the warranty may, at the option of the prosecutor, be taken either before a court having jurisdiction in the place where a sample of the article or substance to which the warranty relates was procured, or before a court having jurisdiction in the place where the warranty was given.

Appeals

Appeals to
magistrates'
courts.

117.—(1) Where any enactment in, or regulation made under, this Act provides for an appeal to a magistrates' court against a refusal or other decision of an authority, the procedure shall be by way of complaint for an order, and the Magistrates' Courts Act, 1952, shall apply to the proceedings.

(2) The time within which such an appeal may be brought shall be twenty-one days from the date on which notice of the authority's refusal or other decision was served upon the person desiring to appeal, and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(3) In any case where such an appeal lies, the document notifying to the person concerned the decision of the authority in the matter shall state the right of appeal to a magistrates' court and the time within which such an appeal may be brought.

118. Where a person aggrieved by an order, determination or other decision of a court of summary jurisdiction under this Act, or under any regulation made thereunder, is not by any other enactment authorised to appeal to a court of quarter sessions, he may appeal to such a court. **Further appeal to quarter sessions.**

119. Where on an appeal under this Act, or under any regulations made under this Act, a court varies or reverses any decision of an authority, it shall be the duty of the authority to give effect to the order of the court, and, in particular, to grant any necessary licence and to make any necessary entry in any register. **Effect of court's decision.**

120.—(1) Where a decision of an authority under this Act, or under any regulations made under this Act, refusing, cancelling, suspending or revoking, registration or a licence, or a decision of a magistrates' court on appeal against such a decision, makes it unlawful for a person to carry on any business which he, or his immediate predecessor in the business, was lawfully carrying on at the date when the decision of the authority was given, or to use any premises for any purpose for which he, or his immediate predecessor in the business, was lawfully using them at the said date, he may carry on that business and use those premises for that purpose until the time for appealing has expired and, if an appeal is lodged, until the appeal is finally disposed of or abandoned or has failed for want of prosecution. **Right to carry on business pending appeal.**

The reference in this subsection to refusing a licence includes, in the case of a licence under Part IV of this Act, a reference to refusing to grant a licence with an express authorisation under subsection (3) of section sixty-two of this Act, or refusing to renew a licence with such an authorisation as aforesaid.

(2) The foregoing provisions with respect to the right to continue to carry on a business and to use premises shall apply also where the decision of a court in proceedings in respect of an

PART V
—cont.

offence under this Act, or under any such regulations as aforesaid, makes it unlawful for a person to carry on a business which he was lawfully carrying on immediately before the decision was given, or to use any premises for any purpose for which he was then lawfully using them.

Compensation

Disputes as to
compensation
under Part I.

121. Where by any of the provisions in Part I of this Act provision is made for the payment of compensation to any person, any dispute arising as to the fact of damage or loss, or as to the amount of compensation, shall be determined by arbitration under this Act:

Provided that, if the compensation claimed does not exceed fifty pounds, all questions as to the fact of damage or loss, liability to pay compensation and the amount of compensation may on the application of either party be determined by, and any compensation awarded may be recovered before, a magistrates' court.

PART VI

MISCELLANEOUS AND GENERAL

Application to
Crown.

122.—(1) Her Majesty may by Order in Council provide for the application to the Crown of such of the provisions of this Act and of any regulations or order made thereunder as may be specified in the Order, with such exceptions, adaptations and modifications as may be so specified.

(2) Without prejudice to the generality of the foregoing subsection, an Order under this section may make special provision for the enforcement of any provisions applied by the Order, and, where any such provision imposes a liability on a person by reason that he is the occupier or owner of premises, or the owner of a business, or the principal on whose behalf any transaction is carried out, the Order may make provision for determining, in a case where the premises are occupied or owned, or the business is owned, by the Crown, or the transaction is carried out on behalf of the Crown, the person who is to be treated as so liable.

Regulations,
orders, etc.

123.—(1) Regulations made under Part I of this Act, Milk and Dairies Regulations and Milk (Special Designation) Regulations, without prejudice to the generality of the provisions under which they are made, may—

- (a) modify for the purposes of the regulations any provisions of this Act relating to the taking, analysis and examination of samples,
- (b) apply, as respects matters to be dealt with by the regulations, any provision in any Act (including this Act) dealing with the like matters, with the necessary modifications and adaptations,

- (c) (subject to the provisions of paragraph 3 of the Fourth Schedule to this Act) provide for an appeal to a magistrates' court against any refusal or other decision of an authority by whom the regulations are to be enforced and executed,
- (d) authorise the making of charges for the purposes of the regulations, or for any services performed thereunder, and provide for the recovery of charges so made,
- (e) contain provisions for imposing on persons offending against the regulations penalties not exceeding the maximum penalties specified in section one hundred and six of this Act,
- (f) make such ancillary and incidental provisions as appear to the Ministers to be necessary or desirable ;

and regulations made under Part I of this Act may, without prejudice as aforesaid, require persons carrying on any activity to which the regulations apply to keep and produce records and furnish returns.

(2) Subsection (1) of this section shall apply to an order made under section five of this Act as it applies to regulations made under Part I of this Act.

(3) The power conferred by paragraph (b) of subsection (1) of this section shall, in the case of Milk (Special Designation) Regulations, include power, in dealing with the procuring of samples for the purpose of the enforcement of conditions of licences authorising the use of a special designation, to exclude provisions of Part II of the Seventh Schedule to this Act which may appear not to be appropriate for that purpose.

(4) Regulations made under section thirteen or section twenty-one of this Act, and any order made under section seventeen of this Act, may be made so as to apply throughout England and Wales or to apply only in such area or areas as may be specified in the regulations or order.

(5) Any order made under section five or section seventeen of this Act, and any Order in Council made under section one hundred and twenty-two of this Act, may be revoked or varied by a subsequent order or Order in Council made under the appropriate section.

(6) Before making any regulations to which subsection (1) of this section applies, and before making an order under section five or section seventeen of this Act, the Ministers, or the Board of Trade in the case of regulations to be made by them, as the case may be, shall consult with such organisations as appear to them to be representative of interests substantially affected by the regulations or by the order :

Provided that this subsection shall not apply in relation to the making of regulations which reproduce, without substantive

PART VI
—cont.

modification, any regulations in force immediately before the commencement of the Food and Drugs Amendment Act, 1954.

**Statutory
instruments.**

124.—(1) Any power to make regulations or orders under this Act, and the power of the Minister of Health to make a declaration under subsection (5) of section sixteen or subsection (4) of section seventeen of this Act, shall be exercisable by statutory instrument.

(2) Any statutory instrument containing—

- (a) regulations made under Part I, or Part II, or subsection (2) of section eighty-nine, of this Act,
- (b) an order made under section five of this Act,
- (c) an order made under section forty-one of this Act ordering that subsection (1) of section thirty-seven of this Act shall cease to be in operation in any area, or
- (d) an Order in Council made under section one hundred and twenty-two of this Act,

shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) No order shall be made under section seventeen of this Act unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

(4) A draft of any statutory instrument containing an order made under section forty-one of this Act bringing subsection (1) of section thirty-seven of this Act into operation in any area shall be laid before Parliament.

Byelaws.

125.—(1) The confirming authority in respect of byelaws made under this Act shall be as follows, that is to say:—

- (a) in the case of byelaws made under section fifteen of this Act, the confirming authority shall be the Minister of Health,
- (b) in the case of byelaws made under Part III of this Act the confirming authority shall be the Minister of Housing and Local Government, and
- (c) in the case of byelaws made under Part IV of this Act, the confirming authority shall be the Minister of Agriculture, Fisheries and Food.

(2) Section two hundred and seventy-seven of the Public Health (London) Act, 1936, so far as it relates to byelaws made under that Act by the Common Council of the City of London or by the port health authority of the Port of London shall, with any necessary adaptation, apply in relation to byelaws made under this Act by the Common Council or, by virtue of an order

of the Minister of Health in pursuance of section eighty-eight of this Act, by the port health authority.

PART VI
—cont.

(3) An authority who propose to apply to the Minister of Health for confirmation of any byelaws made under section fifteen of this Act shall, in addition to complying with any other statutory requirements, publish in the London Gazette, at least one month before the application is made, notice of their intention to apply for confirmation.

(4) In so far as any byelaws made under this Act conflict with regulations made under Part I thereof, the regulations shall prevail.

126.—(1) Any expenses incurred by any Minister of the Crown or Government department in consequence of the provisions of this Act shall be defrayed out of moneys provided by Parliament. Expenses.

(2) Any payments received by the Minister of Agriculture, Fisheries and Food for milk sold by him under section forty-two of this Act, or for treating under that section milk of others, shall be paid into the Exchequer.

(3) Expenses incurred under this Act by the London County Council shall be defrayed as expenses for general county purposes.

(4) Expenses incurred by a county council as a food and drugs authority shall, if the council are not the food and drugs authority for the whole county, be defrayed as expenses for special county purposes charged on those county districts the councils of which are not food and drugs authorities.

(5) Any expenses incurred by a county council in the enforcement and execution of—

(a) regulations made under Part I of this Act,

(b) Milk and Dairies Regulations, or

(c) Milk (Special Designation) Regulations,

shall, if the Minister of Housing and Local Government by order so directs, be defrayed as expenses for special county purposes charged on such part of the county as may be provided by the order; but any such order may be revoked or varied by a subsequent order.

(6) Expenses incurred under this Act by a sampling officer in procuring samples and causing samples to be analysed shall be defrayed by the authority whose officer he is:

Provided that expenses incurred by an officer in complying with a notice given to him under subsection (2) of section ninety-four of this Act shall be borne by the authority whose officer

PART VI
—cont.

gave the notice, and any dispute as to the amount of any such expenses shall be referred to and determined by the Minister of Housing and Local Government.

(7) A county council may, as part of their expenses as a food and drugs authority, make a contribution towards any expenses incurred by the council of a county district within the county, not being a food and drugs authority, in connection with the procuring and analysis or examination of samples and the institution of proceedings under this Act.

Default of food
and drugs
authority.

127.—(1) If the Minister of Agriculture, Fisheries and Food, after communication with a food and drugs authority, is of opinion that the authority have failed in relation to any kind of food to execute or enforce any of the provisions of this Act which it is their duty to execute or enforce, and that their failure affects the general interests of consumers, or the general interests of agriculture in the United Kingdom, he may by order empower an officer of his department to execute and enforce, or procure the execution and enforcement of, those provisions in relation to food of that kind.

(2) Expenses incurred under any such order by the Minister of Agriculture, Fisheries and Food or his officer shall be paid in the first instance out of moneys provided by Parliament, but the amount of those expenses as certified by the said Minister shall, on demand, be paid to him by the food and drugs authority and shall be recoverable by him from them as a debt due to the Crown, and the authority shall have the like power of raising the money required as they have of raising money for defraying expenses incurred directly by them as a food and drugs authority.

(3) Nothing in this section affects any other power exercisable by the Minister of Agriculture, Fisheries and Food, or a county council, with respect to defaults of local authorities.

Protection for
local
government
officers acting
in good faith.

128.—(1) An officer of a council shall not be personally liable in respect of any act done by him in the execution or purported execution of this Act and within the scope of his employment, if he did that act in the honest belief that his duty under this Act required or entitled him to do it:

Provided that nothing in this subsection shall be construed as relieving a council from any liability in respect of acts of their officers.

(2) Where an action has been brought against an officer of a council in respect of an act done by him in the execution or purported execution of this Act and the circumstances are such that he is not legally entitled to require the council to indemnify him, the council may, nevertheless, indemnify

him against the whole or a part of any damages and costs which he may have been ordered to pay or may have incurred, if they are satisfied that he honestly believed that the act complained of was within the scope of his employment and that his duty under this Act required or entitled him to do it.

PART VI
—cont.

(3) For the purposes of this section, a public analyst appointed by a food and drugs authority shall be treated as being an officer of the authority whether or not he is employed whole-time.

129.—(1) If the appointment of any officer of a local authority is determined, or his emoluments are diminished, in consequence of—

Provision for compensation in certain cases to local government officers.

- (a) a local authority ceasing, as respects the whole or any part of their area, to be a food and drugs authority, or
- (b) any such vesting of functions as is mentioned in subsection (4) of section eighty-eight of this Act, or
- (c) any transfer or relinquishment of functions under any of the provisions of the Public Health Act, 1936, which are incorporated in this Act,

the provisions of subsections (2) to (4) and (6) of section one hundred and fifty of, and the Fourth Schedule to, the Local Government Act, 1933, shall apply in relation to that officer—

- (i) as if the cesser, vesting, transfer or relinquishment had taken effect by virtue of an order made by the Minister of Housing and Local Government under Part VI of the said Act of 1933 and coming into operation upon the date on which the cesser, vesting, transfer or relinquishment took effect, and
- (ii) as if the said order provided that any officer who, by virtue or in consequence of the order, might suffer any direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments, and for whose compensation for that loss no other provision was made by or under any enactment for the time being in force, should be entitled to receive compensation from such authority, or from such authorities and in such proportions, as the Minister of Housing and Local Government might determine.

(2) The provisions of this section shall apply in relation to a county council and the officers thereof as they apply in relation to a local authority and the officers thereof.

(3) For the purposes of this section, a public analyst shall be deemed to be an officer of the authority by whom he was appointed.

PART VI
—cont.

Power of
compulsory
purchase
of land.

130.—(1) A local authority may be authorised by the responsible Minister to purchase land compulsorily for the purposes of this Act:

Provided that this subsection shall not be taken as applying to the purposes of paragraph (b) of subsection (1) of section forty-nine of this Act, or of paragraph (a) of section seventy-four thereof.

(2) In the foregoing subsection “the responsible Minister” means—

(a) in relation to the purposes of Part III of this Act, the Minister of Housing and Local Government,

(b) in relation to the purposes of Part IV of this Act, the Minister of Agriculture, Fisheries and Food, and

(c) in relation to any other purposes the Minister of Health ;
and “land” has the same meaning as it has in the Public Health Act, 1936.

(3) In relation to the compulsory purchase of land under this section, the Acquisition of Land (Authorisation Procedure) Act, 1946, shall apply as if this Act had been in force immediately before the commencement of that Act.

Incorporation
of certain
provisions of
Public Health
Act, 1936.

131.—(1) The provisions of the Public Health Act, 1936, which are specified in the first column of Part I of the Ninth Schedule to this Act shall be deemed to be incorporated in this Act ; and, where any of the said provisions as so incorporated contains a reference to “the Minister”, that reference shall be construed for the purposes of this Act in accordance with the entry in the second column of that Schedule against the provision which contains the reference.

(2) Part II of the Ninth Schedule to this Act shall have effect for enabling the Minister of Health by order to make alterations in local Acts consequentially on the passing of the enactments replaced by this Act.

Temporary
continuance
of licence or
registration
on death.

132. Where a person who holds a licence, or is registered in respect of any premises, under this Act or any regulations made thereunder dies, the licence or registration shall, unless previously revoked or cancelled, enure for the benefit of his personal representative, or of his widow or any other member of his family, until the expiration of two months from his death, or until the expiration of such longer period as the licensing or registering authority may allow.

133.—(1) Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any Secretary, Under Secretary or Assistant Secretary of the Board, or any person authorised in that behalf by the President.

PART VI
—cont.
Functions of
Board of
Trade.

(2) In the foregoing subsection the expression “Minister of State” means such a Minister of the Crown as is referred to in section two of the Re-election of Ministers Act, 1919, as explained by the House of Commons Disqualification (Declaration of Law) Act, 1935.

134.—(1) The provisions of paragraphs 1 to 5 of the Tenth Schedule to this Act shall have effect for the purpose of applying to Northern Ireland certain provisions of this Act and for purposes connected therewith.

Application to
Northern
Ireland.

(2) Notwithstanding anything in the Government of Ireland Act, 1920, it shall be within the powers of the Parliament of Northern Ireland to enact legislation—

- (a) for purposes corresponding (with the necessary modifications) with any of the purposes of the provisions of this Act which are specified in sub-paragraph (a) of paragraph 6 of the Tenth Schedule to this Act, or of those specified in sub-paragraph (b) of that paragraph as extended by this Act to Northern Ireland;
- (b) for repealing so much of paragraphs 1 to 5 of the said Tenth Schedule as relates to the provisions of this Act which are specified in sub-paragraph (b) of paragraph 6 of the said Schedule;
- (c) for applying to the Crown, in matters relating to functions of the Crown in respect of Irish services within the meaning of the Government of Ireland Act, 1920, or property held on behalf of the Crown for the purposes of such services, any enactments of the Parliament of Northern Ireland passed, whether before or after the passing of this Act, for purposes similar to those of this Act.

(3) For the purposes of section six of the Government of Ireland Act, 1920, the Defence (Sale of Food) Regulations, 1943, shall be deemed to be made in pursuance of an Act passed before the appointed day within the meaning of that section.

135.—(1) In this Act, unless the context otherwise requires, Interpretation. and without prejudice to section forty-six of this Act,—

“advertisement” includes any notice, circular, label, wrapper, invoice or other document, and any public

PART VI
—cont.

announcement made orally or by any means of producing or transmitting light or sound, and “advertise” shall be construed accordingly ;

“analysis” includes micro-biological assay but no other form of biological assay, and “analyse” shall be construed accordingly ;

“animal” does not include bird or fish ;

“area” in relation to a county council and to officers of such a council means, as the case may require, either the county or that part of the county for which the council are the food and drugs authority and, in relation to a local authority and to officers of such an authority, means their district ;

“article” does not include a live animal or bird ;

“authorised market officer” has the meaning assigned to it by subsection (4) of section fifty-three of this Act ;

“authorised officer” has the meaning assigned to it by section eighty-six of this Act ;

“business” includes the undertaking of a canteen, club, school, hospital or institution, whether carried on for profit or not, and any undertaking or activity carried on by a public or local authority ;

“catering premises” means premises where, in the course of a business, food is prepared and supplied for immediate consumption on the premises ;

“cheese” means the substance usually known as cheese, containing no fat other than fat derived from milk ;

“container” includes any basket, pail, tray, package or receptacle of any kind, whether open or closed ;

“council” includes a port health authority ;

“county” means an administrative county ;

“county district” means a non-county borough, urban district or rural district ;

“cream” means that part of milk rich in fat which has been separated by skimming or otherwise ;

“dairy”, “dairy farm”, “dairy farmer” and “dairyman” have the meanings assigned to them by section twenty-eight of this Act ;

“district”, in relation to the local authority of a borough, or any local authority in London, and in relation to the officers of such an authority, means the borough or other area for which the authority acts ;

“drug” includes medicine for internal or external use ;

“food” includes drink, chewing gum and other products of a like nature and use, and articles and substances used as ingredients in the preparation of food or drink or of such products, but does not include—

(a) water, live animals or birds,

(b) fodder or feeding stuffs for animals, birds or fish, or

(c) articles or substances used only as drugs ;

“food and drugs authority” has the meaning assigned to it by section eighty-three of this Act ;

“functions” includes powers and duties ;

“home-going ship” means a ship plying exclusively in inland waters, or engaged exclusively in coastal excursions ; and for the purpose of this definition “inland waters” means any canal, river, lake, navigation or estuary, and “coastal excursion” means an excursion lasting not more than one day which starts and ends in Great Britain and does not involve calling at any place outside Great Britain ;

“human consumption” includes use in the preparation of food for human consumption ;

“ice-cream” includes any similar commodity ;

“importation” has the same meaning as it has for the purposes of the Customs and Excise Act, 1952, and “import” shall be construed accordingly ;

“importer”, in relation to an imported article, includes any person who, whether as owner, consignor, consignee, agent or broker, is in possession of the article or in any way entitled to the custody or control of it ;

“knacker’s yard” means any premises used in connection with the business of slaughtering, flaying or cutting up animals the flesh of which is not intended for human consumption ;

“local authority”, in sections forty-two and forty-three of this Act has the meaning assigned to it by those sections, and elsewhere in this Act has the meaning assigned to it by section eighty-five thereof ;

“London” means the administrative county of London ;

“market authority” has the meaning assigned to it by subsection (2) of section forty-nine of this Act ;

“milk” includes cream and separated milk, but does not include dried milk or condensed milk ;

“Milk and Dairies Regulations” has the meaning assigned to it by section twenty-nine of this Act ;

PART VI
—cont.

- “Milk (Special Designation) Regulations” has the meaning assigned to it by section thirty-five of this Act ;
- “the Minister”, in Parts II and IV of this Act, and in the Second and Fourth Schedules thereto, means the Minister of Agriculture, Fisheries and Food ;
- “the Ministers” means the Minister of Agriculture, Fisheries and Food and the Minister of Health acting jointly ;
- “officer” includes servant ;
- “premises”, except in Part IV of this Act, means a building or part of a building, and any forecourt, yard or place of storage used in connection with a building or part of a building, and includes, in relation to dairies and dairy farms, and the trade of dairyman or dairy farmer, any land other than buildings ;
- “preparation”, in relation to food, includes manufacture and any form of treatment, and “preparation for sale” includes packaging ; and “prepare” and “prepare for sale” shall be construed accordingly ;
- “public analyst” has the meaning assigned to it by section eighty-nine of this Act ;
- “purveyor”, in relation to milk, includes any person who sells milk, whether wholesale or by retail ;
- “raw milk” means milk which has not been treated by heat ;
- “sampling officer” has the meaning assigned to it by section ninety-one of this Act ;
- “sanitary convenience” means a closet, privy or urinal ;
- “separated”, in relation to milk, includes skimmed ;
- “ship” includes any boat or craft ;
- “shop” has the same meaning as in the Shops Act, 1950 ;
- “slaughterhouse” means a place for slaughtering animals, the flesh of which is intended for sale for human consumption, and includes any place available in connection therewith for the confinement of animals while awaiting slaughter there or for keeping, or subjecting to any treatment or process, products of the slaughtering of animals there ;
- “slaughterhouse facilities” has the meaning assigned to it by subsection (2) of section seventy of this Act ;

“slaughterhouse licence” means a licence under Part IV of this Act authorising the occupier of any premises to keep them as a slaughterhouse ;

“statutory order” means any order, byelaw or other instrument having effect by virtue of an Act of Parliament or confirmed by Parliament ;

“substance” includes a liquid ;

“transit” includes all stages of transit from the dairy, place of manufacture or other source of origin, to the consumer ;

“vessel” includes a receptacle of any kind, whether open or closed.

(2) For the purposes of this Act (except section sixteen thereof), but without prejudice to the provisions of section forty-six thereof,—

(a) the supply of food, otherwise than by sale, at, in or from any place where food is supplied in the course of a business shall be deemed to be a sale of that food, and references to purchasing and purchasers shall be construed accordingly ; and

(b) where in connection with any business in the course of which food is supplied the place where food is served to the customer is different from the place where the food is consumed, both those places shall be deemed to be places in which food is sold.

(3) References in this Act to any enactment shall, except so far as the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment, including this Act.

136.—(1) The enactments and orders specified in the Eleventh Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals, transitional provisions and savings.

(2) The transitional provisions set out in Part I of the Twelfth Schedule to this Act shall have effect for the purposes of the transition to the provisions of this Act from the law in force before the commencement of the Food and Drugs Amendment Act, 1954.

(3) Part II of the Twelfth Schedule to this Act shall have effect for preserving the operation of—

(a) section ninety-nine of the Food and Drugs Act, 1938 (which relates to the metropolitan borough of Woolwich and its markets),

PART VI
—cont.

(b) certain transitory provisions contained in the Slaughterhouses Act, 1954, being provisions which were mainly, but not wholly, spent before the commencement of this Act and are not reproduced by this Act.

(4) The mention of particular matters in the Twelfth Schedule to this Act shall not be taken as affecting the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

**Short title,
commence-
ment and
extent.**

137.—(1) This Act may be cited as the Food and Drugs Act, 1955.

(2) This Act shall come into operation on the day appointed for the coming into operation of the Food and Drugs Amendment Act, 1954, immediately after that Act comes into operation.

(3) Parts III and IV of this Act shall not extend to London.

(4) This Act shall not extend to Scotland.

(5) Except as provided by section one hundred and thirty-four of this Act and the Tenth Schedule thereto, this Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 23.

DISEASES TO WHICH S. 23 (1) APPLIES

Enteric fever (including typhoid and paratyphoid fevers).
Dysentery.
Diphtheria.
Scarlet fever.
Acute inflammation of the throat.
Gastro-enteritis.
Undulant fever.

SECOND SCHEDULE

Section 30.

REFUSAL AND CANCELLATION OF REGISTRATION OF DAIRYMEN, DAIRY FARMS AND DAIRY FARMERS

PART I

DAIRYMEN

1. If it appears to an authority by whom dairymen are registered in pursuance of Milk and Dairies Regulations, other than the Minister of Agriculture, Fisheries and Food (hereafter in this Schedule referred to as "the Minister"), that the public health is, or is likely to be, endangered by any act or default of a person who has applied to be, or, is so registered by the authority, being an act or default, committed whether within or without the district of the authority, in relation to the quality, storage or distribution of milk, they may serve on him a notice—

(a) stating the place and time, not being less than twenty-one days after the date of the service of the notice, at which they propose to take the matter into consideration, and

(b) informing him that he may attend before them, with any witnesses whom he desires to call, at the place and time mentioned to show cause why they should not, for reasons specified in the notice, refuse to register him or cancel his registration, as the case may be, either generally or in respect of any specified premises.

2. A person entitled under the foregoing paragraph to appear before any authority may appear in person or by counsel or a solicitor or any other representative, or may be accompanied by any person whom he may wish to assist him in the proceedings.

3. If a person on whom a notice is served under paragraph 1 of this Schedule fails to show cause to the satisfaction of the authority, they may refuse to register him or may cancel his registration, as the case may be, and shall forthwith give notice to him of their decision in the matter, and shall, if so required by him within fourteen days from the date of their decision, give to him, not less than forty-eight hours after receiving the requirement, a statement of the grounds on which it was based.

4. A person aggrieved by the decision of an authority under this Part of this Schedule to refuse to register him, or to cancel his registration, may appeal to a magistrates' court.

2ND SCH.
—cont.

5. The court before whom a person registered as a dairyman otherwise than by the Minister is convicted of an offence under any of the provisions relating to milk in this Act, or under Milk and Dairies Regulations, may, in addition to any other punishment, cancel his registration as such.

6. An authority other than the Minister may require a person who applies to them for registration as a dairyman to give to them, before his application is considered, information as to whether he is, or has been, registered as a dairyman, whether by them or the Minister or some other authority, and if an applicant who is so required gives to the authority any information which is false in any material respect, he shall be guilty of an offence.

7. Where under this Part of this Schedule a person's application for registration is refused, or his registration is cancelled, he shall not be liable for any breach of contract for the purchase of further supplies of milk from any person, if the refusal or cancellation was due to the quality of the milk supplied by that person.

PART II

DAIRY FARMS AND DAIRY FARMERS

8. Milk and Dairies Regulations shall provide—

- (a) for the refusal by the Minister of registration of a dairy farm or of a person carrying on, or proposing to carry on, the trade of a dairy farmer, if in his opinion, having regard to conditions existing at the premises to be registered, the regulations cannot be complied with and the registration should be refused, and
- (b) for the cancellation of any such registration by the Minister if in his opinion the regulations are not being complied with and the registration should be cancelled.

9. Any regulations made by virtue of the last foregoing paragraph shall—

- (a) require notice to be given to the person affected of any intention to refuse or cancel the registration, stating the grounds on which it is alleged that the regulations cannot be or are not being complied with, as the case may be, and his rights of making objections and representations in accordance with the regulations;
- (b) enable the said person, within the time prescribed by the regulations (which shall not be less, in the case of a refusal, than twenty-eight days or, in the case of a cancellation, than twenty-one days, from the date of the service of the said notice) to object, in respect of all or any of the grounds stated in the said notice, that the regulations can be or are being complied with, as the case may be;
- (c) provide for the reference of any such objection to a tribunal constituted in accordance with the regulations;

- (d) provide for the procedure of the said tribunal, and in particular for entitling the person objecting to appear before the tribunal with any witnesses he desires to call, and to require the tribunal to inspect the premises to which the objections relate;
- (e) require the said tribunal to determine whether the objections are made out and, if not, on which of the grounds in respect of which they are made they are not made out, and provide that, in the event of a difference of opinion among the members of the tribunal, the determination of the majority of them shall be the determination of the tribunal;
- (f) require that the determinations of the tribunal shall be reported to the Minister and communicated by him to the person objecting, and provide that the determinations of the tribunal as stated in the report shall, for the purpose of the proposal to refuse or cancel registration, be conclusive evidence of the facts found thereby;
- (g) enable the said person within the time so prescribed to make representations to the Minister that the registration should not be refused or cancelled on the grounds stated in the notice mentioned in sub-paragraph (a) of this paragraph;
- (h) provide that no registration shall be cancelled—
- (i) in any case, until the expiration of the prescribed time for making objections or representations under the regulations;
 - (ii) in a case where an objection is made within that time, until the report of the tribunal thereon has been received and considered by the Minister;
 - (iii) in a case where representations are made to the Minister within that time, until the representations have been considered by him.

2ND SCH.
—cont.

10. There shall be paid out of moneys provided by Parliament to the chairman of any such tribunal as is referred to in the last foregoing paragraph such remuneration (by way of salary or fees) and such allowances as the Minister may, with the approval of the Treasury, determine.

THIRD SCHEDULE

Section 31.

DISEASES OF COWS TO WHICH S. 31 APPLIES

Acute mastitis.

Actinomycosis of the udder.

Suppuration of the udder.

Any infection of the udder or teats which is likely to convey disease.

Any comatose condition.

Any septic condition of the uterus.

Anthrax.

Foot-and-mouth disease.

Sections 35, 45.

FOURTH SCHEDULE

POWERS AS TO REVOCATION OR SUSPENSION OF LICENCES TO USE SPECIAL DESIGNATIONS, AND PROCEDURE AS TO REVOCATION, SUSPENSION OR REFUSAL THEREOF

PART I

GENERAL

1. Provision shall be made by Milk (Special Designation) Regulations for enabling the licensing authority or, on an appeal made to him by virtue of the subsequent provisions of this Schedule in that behalf, the Minister of Agriculture, Fisheries and Food (hereafter in this Schedule referred to as "the Minister"), to revoke or suspend a licence authorising the use of a special designation, on the ground of any breach of condition thereof which is proved to the satisfaction of the licensing authority, or of the Minister, as the case may be:

Provided that this paragraph shall, in relation to licences for specified areas, have effect subject to the provisions of Part II of this Schedule.

2. Provision shall be made by such regulations as aforesaid as to any decision to revoke or suspend such a licence as aforesaid or to refuse a grant of such a licence—

- (a) where the licensing authority is a local authority, for conferring on the holder of the licence or the applicant, as the case may be (in this Schedule referred to as "the person affected") a right to be heard by the appropriate committee of the authority before a decision is made, and a right of appeal to the Minister against a decision adverse to the person affected;
- (b) for requiring the Minister on any such appeal to him, and when acting as licensing authority, before making his decision to afford to the person affected an opportunity of making representations;
- (c) for securing that any such hearing as aforesaid by a committee shall be in public, that the person affected shall be entitled to be heard by himself or by counsel or a solicitor or other representative as he may elect, and that he or his representative shall be entitled to call witnesses and to cross-examine witnesses called by another; and
- (d) for securing that such notice of a decision or proposed decision shall be given to the person affected as may be requisite for enabling him effectively to exercise rights conferred on him by virtue of the foregoing provisions of this paragraph.

3. Paragraph (c) of subsection (1) of section one hundred and twenty-three of this Act shall not apply to any such decision as is mentioned in the last foregoing paragraph.

PART II

LICENCES HELD BY RETAILERS FOR SPECIFIED AREAS

4.—(1) Any provision for the revocation of a licence authorising the use of a special designation on the ground of breach of a condition thereof made by Milk (Special Designation) Regulations shall be such as to secure that a licence held by a retailer for a specified area shall

not be revoked, and a grant of a licence by way of renewal of a licence so held shall not be refused, on the ground of breach of a condition of the licence so held, unless—

4TH SCH.
—cont.

- (a) the breach in question is of a condition to which section forty-three of this Act applies,
- (b) the holder of the licence has been convicted of an offence under that section by virtue of the breach in question, or has been convicted, within twelve months before the time of the breach in question or after the time of it, of an offence under section twenty-two of the Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950, or under section thirty-six, thirty-seven or thirty-eight of this Act, or of an offence under Milk and Dairies Regulations for which a penalty is thereby imposed, and
- (c) the decision of the licensing authority to revoke, or to refuse renewal, as the case may be, is made within twelve months from the date of the breach in question.

(2) Any provision for the suspension of a licence authorising the use of a special designation on the ground of breach of a condition thereof made by Milk (Special Designation) Regulations shall be such as to secure that—

- (a) a licence held by a retailer for a specified area shall not be suspended, by virtue of any one decision of the authority having power to suspend it, for a period of more than three months, but
- (b) a period of suspension of such a licence awarded by any such decision may be extended by a subsequent such decision made in accordance with the provisions of this Schedule.

(3) For the purposes of any decision for the suspension of a licence held by a retailer for a specified area, the term of that licence and of any licence granted by way of renewal thereof shall be treated as if they had been a single term, and accordingly—

- (a) a period of suspension of such a licence of three months or less may be awarded notwithstanding that that period is longer than the unexpired residue of the term of the licence; and
- (b) where such a longer period of suspension of such a licence is awarded, a licence may be granted by way of renewal thereof but that licence shall be in suspense until the expiry of that period, and such a decision for extension of that period as is mentioned in paragraph (b) of sub-paragraph (2) of this paragraph may be made so as to extend the suspension of that licence.

5. Paragraph 1 of this Schedule shall, in so far as it relates to proof of a breach of condition of a licence, have effect subject as follows, that is to say—

- (a) the provision to be made as therein mentioned shall extend to a breach by virtue of which the holder of the licence has been convicted of an offence under section forty-three of this Act without requiring any proof thereof other than conviction; and

4TH SCH.
—cont.

- (b) in relation to a case referred to a tribunal by virtue of the subsequent provisions of this Schedule, not being a case in which the holder of the licence has been convicted as aforesaid, the said paragraph 1 shall have effect with the substitution of a reference to proof by the finding of the tribunal for the reference to proof to the satisfaction of the licensing authority or the Minister.

6.—(1) Milk (Special Designation) Regulations shall, where the issue is as to the revocation or suspension of a licence held by a retailer for a specified area, or as to the refusal to grant such a licence by way of renewal of such a licence, provide—

- (a) for requiring the Minister on such an appeal as is mentioned in sub-paragraph (a) of paragraph 2 of this Schedule, and when acting as licensing authority, to refer the matter to a tribunal constituted in accordance with the regulations if the person affected so requests;
- (b) for requiring that the duty of such a tribunal on any such reference shall be to report findings on any questions of fact appearing to them to be relevant, and in particular, where the issue is as to revocation or suspension on the ground of a breach of condition not being one by virtue of which the holder of the licence has been convicted of an offence under section forty-three of this Act, to find and report whether the breach was in fact committed (which finding shall be conclusive for the purposes of this Schedule), and for requiring the Minister to consider the report of the tribunal before making his decision;
- (c) for the procedure of such a tribunal, including provision for conferring on the person affected a right to be heard by the tribunal, and including provision for treating the finding of a majority of the members of such a tribunal as the finding of the tribunal in the event of a difference of opinion among the members;
- (d) for securing that any such hearing as aforesaid by a tribunal shall be in public, that the person affected shall be entitled to be heard by himself or by counsel or a solicitor or other representative as he may elect, and that he or his representative shall be entitled to call witnesses and to cross-examine witnesses called by another; and
- (e) for securing that such notice of a decision or proposed decision shall be given to the person affected as may be requisite for enabling him effectively to exercise rights conferred on him by virtue of the foregoing provisions of this paragraph.

(2) There shall be paid out of moneys provided by Parliament to the chairman of any such tribunal as aforesaid such remuneration (by way of salary or fees) and such allowances as the authority appointing him may, with the approval of the Treasury, determine.

FIFTH SCHEDULE

Section 43.

CONDITIONS TO WHICH S. 43 APPLIES

Conditions to which section forty-three of this Act applies are conditions relating to any of the following matters, that is to say:—

1. The examination or testing of animals, the inoculation of animals, the keeping of any animal or herd away from other animals, or other measures for detecting the existence of disease in animals or preventing the contracting or spread of it.

2. The marking, or keeping of records, of any animals, or other measures for identification thereof.

3. The subjection of milk to any process of heat-treatment, or to any cooling or other process, requirements in connection with the subjection of milk thereto or as to the temperature or other conditions under which it is to be kept thereafter, or the recording or retention of evidence of the observance of such requirements.

4. Satisfaction of a test of milk, being a test related to the subjection of milk to such a process as aforesaid or to the observance of any such requirements as aforesaid.

5. Measures for securing that milk produced, or subjected to a process, as required by any conditions is kept away from, and free from admixture with, other milk not so produced or subjected or other things, or is not subjected to some specified process.

6. The manner in which milk produced, or subjected to any process, in accordance with any conditions is to be dealt with or kept as respects the receptacles in which it is to be put or to remain, the closing or fastening of receptacles, or the marking of receptacles or of things by which they are closed or fastened.

7. The manner of describing milk produced, or subjected to any process, in accordance with any conditions.

8. The making or keeping of records of milk produced, bought, subjected to any process, or sold.

Section 87.

SIXTH SCHEDULE

PROVISIONS TO BE ENFORCED BY PARTICULAR AUTHORITIES

Authorities	Provisions to be enforced and executed
The Minister of Agriculture, Fisheries and Food	(a) Any order made under section five of this Act; (b) Section thirty-six of this Act, so far as it applies to anything done in relation to raw milk by the producer of the milk; (c) Subsection (1) of section forty-three of this Act, so far as it relates to— (i) licences authorising the use of a special designation in relation to milk by a local authority within the meaning of the said section forty-three, and (ii) licences authorising the use of a special designation in relation to raw milk by the producer of the milk; (d) Milk and Dairies Regulations in respect of— (i) dairy farms, (ii) the registration of persons carrying on or proposing to carry on the trade of a dairy farmer, or (iii) the registration of occupiers of premises used temporarily as dairy farms; but excluding regulations made for the purposes of paragraph (f) or paragraph (g) of subsection (1) of section twenty-nine of this Act; (e) Milk (Special Designation) Regulations in respect of the use of a special designation of raw milk by the producer of the milk.
Food and drugs authorities	(a) Sections one, two and six; (b) Section thirty-two; (c) Subsections (1) and (2) of section thirty-six (except as regards any use of a special designation in relation to raw milk, and as regards the making of any reference to raw milk by such a description as is mentioned in the said subsection (2), by the producer of the milk); (d) Sections thirty-seven, thirty-eight and forty-seven.
County councils and county borough councils	Section thirty-one.

SEVENTH SCHEDULE

Sections 93, 94,
95, 96, 97, 115,
123.

SAMPLING

PART I

PROVISIONS AS TO MANNER IN WHICH SAMPLES TAKEN OR PURCHASED
FOR ANALYSIS ARE TO BE DEALT WITH

1. The sampling officer shall forthwith divide the sample into three parts, each part to be marked and sealed or fastened up in such manner as its nature will permit, and shall—

- (a) with respect to one part of the sample comply with paragraphs 2 to 8 of this Schedule, and
- (b) deal with the remaining parts in accordance with paragraph 9 of this Schedule.

2.—(1) If the sample was purchased by the sampling officer, he shall give the part of the sample to the vendor.

(2) In relation to a sample purchased from an automatic machine, this paragraph shall apply as if for the reference to the vendor there were substituted a reference—

- (a) if the name and address (being an address in England or Wales) of a person stated to be the proprietor of the machine appears on the machine, to that person;
- (b) in any other case, to the occupier of the premises on which the machine stands or to which it is affixed.

3. If the sample is of goods consigned from outside England and Wales and was taken by the sampling officer before delivery to the consignee, the officer shall give the part of the sample to the consignee.

4.—(1) This paragraph applies in relation to any sample of milk taken by the sampling officer, except to—

- (a) one in relation to which the last foregoing paragraph applies, or
- (b) any sample of cream.

(2) If the sample was taken from a container—

- (a) having a capacity greater than six pints, and
- (b) appearing to the officer to show the name and address (being an address in England or Wales) of any person as consignor of the milk,

the officer shall give the part of the sample to that person.

(3) If the sample was taken from a container—

- (a) having a capacity of six pints or less, and
- (b) appearing to the officer to show the name and address (being an address in England or Wales) of any person as the person who put the milk into the container,

the officer shall give the part of the sample to that person.

(4) If—

- (a) neither of the two foregoing sub-paragraphs apply, and
- (b) the sample was taken at a dairy,

the officer shall give the part of the sample to the occupier of the dairy.

7TH SCH
—cont.

(5) If none of the three foregoing sub-paragraphs apply, the officer shall give the part of the sample—

(a) to the occupier of the dairy from which the milk was consigned, or

(b) if the milk was consigned from more than one dairy, to the occupier of the dairy from which it was last consigned.

5. If—

(a) none of the foregoing paragraphs of this Schedule apply, and

(b) the sample was taken by the sampling officer at the request of a purchaser, or taken with the consent of a purchaser by retail,

the officer shall give the part of the sample to the vendor.

6. If—

(a) none of the foregoing paragraphs of this Schedule apply, and

(b) the sample was taken in transit,

the sampling officer shall give the part of the sample to the consignor.

7. If none of the foregoing paragraphs of this Schedule apply, the sampling officer shall give the part of the sample to the person appearing to be the owner of the food, drug or substance of which the sample was taken.

8. In every case to which paragraphs 2 to 7 of this Schedule apply the sampling officer shall inform the person to whom the part of the sample is given that the sample was purchased or taken for the purpose of analysis by a public analyst.

9. Of the remaining parts of the sample, the sampling officer shall, unless he decides not to have an analysis made, submit one for analysis in accordance with section ninety-two of this Act, and retain the other for future comparison.

10. Any part of a sample which under this Schedule is to be given to any person may be given either by delivering it to him or to his agent or by sending it to him by post in a registered packet; but where after reasonable inquiry the sampling officer is unable to ascertain the name and address of the person to whom the part of the sample is to be given, he may, in lieu of giving the part to that person, retain it.

PART II

SPECIAL PROVISIONS AS TO SAMPLING OF MILK

11. Where a sample of milk is procured from a purveyor of milk, he shall, if required to do so by the person by whom or on whose behalf the sample was procured, state the name and address of the seller or consignor from whom he received the milk.

12. Within sixty hours after the sample was procured from the purveyor, he may serve on the authority by whose officer it was procured, or, if it was not procured by an officer of any authority, on the food and drugs authority within whose area it was procured, a notice stating the name and address of the seller or consignor from whom he received the milk and the time and place of delivery to himself of milk from a corresponding milking, and requesting the authority

to take immediate steps to procure, as soon as practicable, a sample of milk from a corresponding milking in the course of transit or delivery to himself from the seller or consignor:

7TH SCH.
—cont.

Provided that—

- (a) if such a sample has been so procured since the sample in question was procured, or had been so procured within twenty-four hours prior to that sample being procured, it shall not be necessary for the authority to procure another sample in accordance with the notice; and
- (b) the purveyor shall have no right to require that such a sample shall be procured if the milk from which the sample procured from him was taken was a mixture of milk produced on more than one dairy farm.

13. If a purveyor has served on the authority such a notice as aforesaid, and the authority have, in a case not falling within the proviso to the last foregoing paragraph, omitted to procure a sample of milk from the seller or consignor in accordance with the foregoing provisions, no proceedings under this Act shall be taken against the purveyor in respect of the sample procured from him.

14. Any sample so procured in the course of transit or delivery shall be submitted for analysis to the analyst to whom the sample procured from the purveyor is or was submitted.

15. If proceedings are taken against the purveyor, a copy of the certificate of the result of the analysis of every sample so procured in the course of transit or delivery shall be furnished to him, and every such certificate and copy shall, subject to the provisions of section one hundred and ten of this Act, be admissible as evidence on any question whether the milk sold by the purveyor was sold in the same state as it was in when he purchased it.

16. The authority by whose officer, or within whose area, the first mentioned sample was procured may, instead of, or in addition to, taking proceedings against the purveyor, take proceedings against the seller or consignor.

17. If a sample of milk of cows in any dairy is procured in course of transit or delivery from that dairy, the dairyman may, within sixty hours after the sample was procured, serve on the authority by whose officer the sample was procured a notice requesting them to take immediate steps to procure as soon as practicable a sample of milk from a corresponding milking of the cows and, thereupon, paragraphs 12 to 15 of this Schedule shall, so far as applicable, apply with any necessary modifications:

Provided that the person procuring the sample shall be empowered to take any such steps at the dairy as may be necessary to satisfy him that the sample is a fair sample of the milk of the cows when properly and fully milked.

Section 109.

EIGHTH SCHEDULE

GOVERNMENT DEPARTMENTS SPECIALLY AUTHORISED TO
INSTITUTE PROCEEDINGS FOR OFFENCES

Minister or Department	Offences for which proceedings may be instituted
The Minister of Agriculture, Fisheries and Food	An offence against section one, section two or section six of this Act, other than an offence committed in respect of a drug; An offence against section eight of this Act committed in respect of milk, or in respect of meat or meat products while in a slaughterhouse or in the course of importation; An offence against section twelve of this Act;
The Minister of Health	An offence against regulations made by the Ministers under section four or section seven of this Act. An offence against section eight of this Act, other than an offence committed in respect of milk, or in respect of meat or meat products while in a slaughterhouse or in the course of importation; An offence against section sixteen, section twenty-two or section twenty-seven of this Act.
The Board of Trade	An offence against regulations made by the Board under section seven of this Act.

Section 131.

NINTH SCHEDULE

INCORPORATION OF PROVISIONS OF PUBLIC HEALTH ACT,
1936, AND POWER TO AMEND LOCAL ACTS

PART I

SECTIONS INCORPORATED

Section of Public Health Act, 1936, incorporated in this Act	Construction in section as incorporated of references to "the Minister"
Section 271 (Interpretation of "provide") Section 272 (Power of councils to combine for purposes of Act) Section 273 (Provisions as to sub-committees) Section 277 (Power of councils to require information as to ownership of premises) Section 283 (Notices to be in writing; forms of notices, etc.)	In this section "the Minister"— (a) in relation to the purposes of sections fifteen, sixteen to twenty, twenty-three, twenty-six and twenty-seven of this Act, means the Minister of Health; (b) in relation to the purposes of Part III of this Act, means the Minister of Housing and Local Government; and (c) in relation to other purposes means the Minister of Agriculture, Fisheries and Food.

Section of Public Health Act, 1936, incorporated in this Act	Construction in section as incorporated of references to "the Minister"
Section 284 (Authentication of documents) Section 285 (Service of notices, etc.) Section 286 (Proof of resolutions, etc.) Section 289 (Power to require occupier to permit works to be executed by owner) Section 303 (Mode of reference to arbitration)	In this section "the Minister",— (a) in relation to arbitrations under subsection (4) of section nine of this Act in respect of milk, or in respect of meat or meat products seized while in a slaughterhouse or in the course of importation, means the Minister of Agriculture, Fisheries and Food, and (b) in relation to other arbitrations, means the Minister of Health.
Section 304 (Judges and justices not to be disqualified by liability to rates) Section 311 (Loans by Public Works Loans Commissioners) Section 317 (Amendment of Public Health Act, 1875, s. 303) Section 318 (Local inquiries)	In this section "the Minister", in relation to anything authorised to be done under this Act by any Minister or Ministers, or by the Board of Trade, means that Minister or those Ministers, or the said Board, as the case may be.
Section 320 (Relinquishment of functions by district councils)	In this section "the Minister"— (a) in relation to functions of councils of county districts under Part III of this Act, means the Minister of Housing and Local Government; (b) in relation to functions of such councils under Part IV of this Act, means the Minister of Agriculture, Fisheries and Food; (c) in relation to functions of such councils under regulations made under this Act (other than regulations made by the Board of Trade) means the Minister of Health and the Minister of Agriculture, Fisheries and Food, acting jointly; (d) in relation to functions of such councils under regulations made under this Act by the Board of Trade, means that Board; and

9TH SCH.
—cont.

Section of Public Health Act, 1936, incorporated in this Act	Construction in section as incorporated of references to "the Minister"
Section 320 (Relinquishment of functions by district councils)— <i>cont.</i> Sections 321 to 325 (Default powers in relation to functions of councils)	(e) in relation to any other functions of such councils, means the Minister of Health. In these sections "the Minister"— (a) means the Minister of Health in relation to functions of councils or joint boards under any of the following provisions of this Act, that is to say— (i) sections fifteen, sixteen to twenty, twenty-two, twenty-three, twenty-five, twenty-six and twenty-seven; (ii) section eighty-seven, so far as it relates to the enforcement and execution of sections eight and nine of this Act (except in their application to milk, or to meat or meat products while in a slaughterhouse or in the course of importation) and to the enforcement and execution of section thirty-one of this Act; (iii) any other provision of this Act, so far as it relates to drugs; (b) in relation to functions of councils or joint boards under Part III of this Act, means the Minister of Housing and Local Government; (c) in relation to functions of councils or joint boards under regulations made under this Act (other than regulations made by the Board of Trade) means the Minister of Health and the Minister of Agriculture, Fisheries and Food, acting jointly; (d) in relation to functions of councils or joint boards under regulations made under this Act by the Board of Trade, means the said Board; and (e) in relation to any other functions of councils or joint boards means the Minister of Agriculture, Fisheries and Food.
Section 328 (Powers of Act to be cumulative)	

PART II

PROVISION CORRESPONDING TO PUBLIC HEALTH ACT,
1936, s. 3139TH SCH.
—cont.

1.—(1) Where there is in force—

- (a) in any county borough a local Act, the Bill for which was promoted by the council of the borough, or
- (b) in any county or county district a local Act, the Bill for which was promoted either by the county council or by the local authority of the district,

and the said Act contains provisions which were in force at the date of the passing of one of the repealed enactments and appear to the Minister of Health either—

- (i) to be inconsistent with the provisions of this Act which correspond to those of that repealed enactment, or
- (ii) to have become redundant in consequence of the passing of that repealed enactment,

the following provisions of this paragraph shall have effect.

(2) The Minister of Health may on the application, in the case mentioned in sub-paragraph (a) of the foregoing paragraph, of the council of the county borough and, in the case mentioned in sub-paragraph (b) of that paragraph, of the county council or the local authority, by order make such alterations in the said local Act (whether by amendment or repeal) as appear to him to be necessary for the purpose—

- (a) in the case mentioned in sub-paragraph (i) of the said paragraph, of bringing the provisions of the local Act into conformity with the provisions mentioned in that sub-paragraph, or
- (b) in the case mentioned in sub-paragraph (ii) of that paragraph, of removing the redundant provisions.

(3) In this paragraph the expression “repealed enactment” means any enactment repealed by this Act, or by the Food and Drugs (Milk, Dairies, and Artificial Cream) Act, 1950.

2. The foregoing paragraph applies in relation to a local Act the Bill for which was promoted by any authority, board, commissioners, trustees or other body whose functions under the local Act became exercisable by the council of a county or county borough, or by a local authority, as if the Bill for that Act had been promoted by the said council or authority.

3. The power to make orders under this Part of this Schedule shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

Section 134.

TENTH SCHEDULE

PROVISIONS RELATING TO NORTHERN IRELAND

1. Subject to the following provisions of this Schedule,—
 - (a) sections four, five, seven and thirteen of this Act shall apply to Northern Ireland so far as they relate to importation;
 - (b) the following provisions of this Act, that is to say—
 - subsection (4) of section eighty-two,
 - subsections (1) and (3) of section eighty-seven,
 - subsections (3), (4) and (6) of section ninety-one,
 - subsections (1) and (3) of section ninety-three,
 - section ninety-seven,
 - subsections (1) to (6) of section one hundred,
 - subsections (1) and (2) of section one hundred and one,
 - section one hundred and three,
 - section one hundred and seven,
 - subsections (1) and (3) of section one hundred and nine,
 - subsection (4) of section one hundred and ten,
 - section one hundred and thirteen,
 - subsections (1), (2), (5) and (6) of section one hundred and twenty-three,
 - subsections (1) and (2) of section one hundred and twenty-four,
 - the Sixth Schedule, with respect to the enforcement and execution of an order under section five of this Act,
 - Part I of the Seventh Schedule, and
 - the Eighth Schedule, with respect to an offence against regulations made under section four of section seven of this Act,shall apply to Northern Ireland so far as they relate,—
 - (i) to regulations and orders made or to be made under Part I of this Act (other than regulations made or to be made by the Board of Trade), being regulations and orders which apply to Northern Ireland, or
 - (ii) to the enforcement or execution of such regulations or orders;
 - (c) section one hundred and twenty-two of this Act shall apply to Northern Ireland, except so far as it relates to functions of the Crown in respect of Irish services within the meaning of the Government of Ireland Act, 1920, or to property held on behalf of the Crown for the purposes of such services, and sections one hundred and twenty-three and one hundred and twenty-four of this Act shall apply to Northern Ireland so far as they relate to an Order in Council made under the said section one hundred and twenty-two and extending to Northern Ireland;
 - (d) section one hundred and thirty-six of this Act shall apply to Northern Ireland so far as it effects the repeal of subsection (2) of section one hundred and two of the Food and Drugs Act, 1938, and of the Food and Drugs Amendment Act, 1954.

2. In the application to Northern Ireland of any enactment referred to in the foregoing paragraph—

10TH SCH.
—cont.

- (a) any reference to the Ministers shall be construed as a reference to the Secretary of State, the Minister of Health and the Minister of Agriculture, Fisheries and Food, acting jointly;
- (b) references to the Board of Trade shall be omitted, and references to regulations shall be construed as excluding references to regulations made by the said Board;
- (c) any reference to a council shall be construed as, and any reference to a food and drugs authority shall be construed as including, a reference to a health authority or a port sanitary authority;
- (d) any reference to a sampling officer shall be construed as a reference to an officer authorised in that behalf by any such authority as aforesaid or by the Minister of Agriculture, Fisheries and Food;

and the provisions of this Act which are specified in the first column of the following Table shall, in their application to Northern Ireland, have effect subject to the additional modifications specified in relation thereto in the second column of that Table.

TABLE

*Provision of this
Act applying to
Northern Ireland*

Modification

Section 4:

Subsection (1)... In paragraph (c) for the reference to England and Wales there shall be substituted a reference to Northern Ireland.

Subsection (4)... For the reference to section nine of this Act there shall be substituted a reference to any corresponding Northern Irish enactment.

Section 5:

Subsection (1)... The words "production" and "or use" shall be omitted.

Subsection (3)... The reference to summary conviction shall be construed as a reference to conviction in accordance with the Northern Irish enactments relating to summary jurisdiction.

Section 87:

Subsection (3)... Paragraph (a) shall be modified so as to have effect as follows:—

"(a) in the case of regulations made under Part I of this Act, health authorities, port sanitary authorities or the Commissioners of Customs and Excise";

The reference to any authority concerned in the administration of this Act shall be construed as a reference to any authority concerned in the administration of any corresponding Northern Irish enactment.

10TH SCH.
—cont.*Provision of this
Act applying to
Northern Ireland**Modification***Section 100:**

Subsection (6)... The subsection shall be modified so as to have effect as follows:—

“(6) Nothing in this section shall authorise any person, except with the permission of the health authority under the Diseases of Animals Acts (Northern Ireland), 1894 to 1955, to enter any cowshed or other place in which an animal affected with any disease to which those Acts apply is kept and which is situated in a place declared under those Acts to be infected with such a disease.”

Section 101:

Subsection (1)... The reference in paragraph (b) to any home-going ship shall be omitted.

Section 103

... The section shall be modified so as to have effect as follows:—

“(1) An inspector of the Minister of Agriculture, Fisheries and Food shall, for the purpose of ascertaining whether there is or has been any contravention of the provisions of any regulations or order made under this Act and applying to Northern Ireland, have the powers of entry specified in the following subsection.

(2) The powers of entry referred to in the foregoing subsection are the like powers of entry as are exercisable under section one hundred or section one hundred and one of this Act by an authorised officer of a council; and in relation to any such inspector the reference in subsection (2) of section one hundred of this Act to the council shall be construed as a reference to the Minister of Agriculture, Fisheries and Food.”

Section 109:

Subsection (3)... Paragraph (a) shall be omitted.

Section 110:

Subsection (4)... The words “under this Act” and paragraph (b) shall be omitted.

Section 122:

Subsection (1)... The reference to this Act shall include a reference to any corresponding Northern Irish enactment, and the reference to regulations shall be construed accordingly.

*Provision of this
Act applying to
Northern Ireland*

Modification

10TH SCH.
—cont.

Section 123:

Subsection (1)... In paragraph (a), the reference to this Act shall include a reference to any corresponding Northern Irish enactment.

In paragraph (b) the reference to any Act shall include a reference to any Northern Irish enactment, and the reference to this Act shall include a reference to any corresponding Northern Irish enactment.

In paragraph (c), the reference to a magistrates' court shall be construed as a reference to a court of summary jurisdiction constituted in accordance with the Northern Irish enactments relating to summary jurisdiction.

In paragraph (e), for the reference to section one hundred and six of this Act there shall be substituted a reference to the corresponding Northern Irish enactment.

Section 124:

Subsection (2)... Paragraph (c) shall be omitted.

7th Schedule, Part I In paragraph 2, sub-paragraph (2) shall be omitted.

For the reference in paragraph 3 to England and Wales, and for each of the references in paragraph 4 to England or Wales, there shall be substituted a reference to Northern Ireland;

In paragraph 9, for the words "in accordance with section ninety-two of this Act" there shall be substituted the words "as if the sample had been procured under section thirteen of the Sale of Food and Drugs Act, 1875".

3. Any regulations or order made under this Act and extending to Northern Ireland shall provide for applying, in relation to offences thereunder, the provisions of section one hundred and eight of this Act or of any corresponding Northern Irish enactment, subject to such modifications or adaptations (if any) as may be specified in the regulations or order.

4. Any expenses incurred in the enforcement or execution of regulations with respect to the importation of food (including milk) in Northern Ireland—

(a) if incurred by a health authority, shall be defrayed in like manner as expenses are defrayed under subsection (1) of section twenty-five of the Public Health and Local Government (Administrative Provisions) Act (Northern Ireland), 1946, or under that section as amended or re-enacted (with or without modifications) by any Northern Irish enactment;

10TH SCH.
—cont.

(b) if incurred by a port sanitary authority, shall be defrayed in like manner as expenses are defrayed under subsection (4) of section nine of the Public Health (Ireland) Act, 1896, or under that section as amended or re-enacted (with or without modifications) by any Northern Irish enactment.

5. In the foregoing provisions of this Schedule "Northern Irish enactment" means any enactment for the time being in force in Northern Ireland, including any enactment of the Parliament of Northern Ireland.

6. The provisions of this Act referred to in subsection (2) of section one hundred and thirty-four of this Act are the following, that is to say:—

(a) subsection (3) of section ninety-three and section one hundred and fourteen;

(b) subsection (1) of section eighty-seven, subsections (3), (4) and (6) of section ninety-one, subsections (1) and (3) of section ninety-three, section ninety-seven, subsections (1) to (6) of section one hundred, subsections (1) and (2) of section one hundred and one, sections one hundred and three and one hundred and seven, subsections (1) and (3) of section one hundred and nine, subsection (4) of section one hundred and ten, section one hundred and thirteen, the Sixth Schedule, Part I of the Seventh Schedule and the Eighth Schedule.

Section 136.

ELEVENTH SCHEDULE

REPEALS

Session and Chapter, or Serial Number	Short title	Extent of Repeal
1 & 2 Geo. 6 c. 56	The Food and Drugs Act, 1938	The whole Act.
S.R. & O. 1946 No. 1757	The Transfer of Functions (Secretary of State and Minister of Health) Order, 1946	In Article 3, paragraphs (8) and (9); in the Schedule, the entry relating to section fifty-six of the Food and Drugs Act, 1938.
9 & 10 Geo. 6 c. 81	The National Health Service Act, 1946	In Part I of the Tenth Schedule, the entry relating to the Food and Drugs Act, 1938.
S.I. 1948 No. 107	The Transfer of Functions (Food and Drugs) Order, 1948	The whole Order.
S.I. 1948 No. 865	The Transfer of Functions (Secretary of State and Minister of Health) Order, 1948	In Article 2, paragraphs (a) and (b).
14 Geo. 6 c. 35	The Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950	The whole Act.

Session and Chapter, or Serial Number	Short title	Extent of Repeal
S.I. 1951 No. 753	The Transfer of Functions (Minister of Health and Minister of Local Government and Planning) (No. 2) Order, 1951	In the Schedule, the entry relating to the Food and Drugs Act, 1938.
S.I. 1952 No. 2033	The Transfer of Functions (Slaughterhouses and Knackers' Yards) Order, 1952	In Article 2, in paragraph (1), sub-paragraphs (b) to (f); and Article 4.
S.I. 1954 No. 141	The Transfer of Functions (Markets) Order, 1954	In Article 2, in paragraph (1), sub-paragraph (a), sub-paragraph (b) so far as it relates to the confirmation of byelaws under section fifty-six of the Food and Drugs Act, 1938, and sub-paragraphs (c) and (d).
2 & 3 Eliz. 2 c. 42	The Slaughterhouses Act, 1954	Part I, except subsection (5) of section three. In section nineteen, paragraphs (a) and (c). In section twenty, subsection (2). In section one, subsections (1) to (3). In subsection (2) of section nine, the words " and except so far as it amends the Food and Drugs Act, 1938 "
2 & 3 Eliz. 2 c. 59	The Slaughter of Animals (Amendment) Act, 1954	In Part I of the Second Schedule, the entry relating to the Food and Drugs Act, 1938. The whole Act.
2 & 3 Eliz. 2 c. 67	The Food and Drugs Amendment Act, 1954	The whole Act.
S.I. 1955 No. 959.	The Transfer of Functions (Food and Drugs) Order, 1955.	The whole Order, except so far as it relates to functions under the Welfare Foods (Great Britain) Order, 1954.

Section 136.

TWELFTH SCHEDULE

TRANSITIONAL PROVISIONS AND SAVINGS

PART I

TRANSITIONAL PROVISIONS

Regulations and Orders

1.—(1) Any regulations which, immediately before the commencement of this Act, were in force under any enactment repealed by this Act (whether made under that enactment or under an earlier enactment replaced thereby) shall continue in force, and shall have effect, as regulations made under the corresponding provision of this Act; and references in this Act to regulations made thereunder shall be construed accordingly.

(2) Any regulations made under Part I or Part III of the Food and Drugs Act, 1938, and continued in force by the foregoing sub-paragraph shall have effect (subject to any variation thereof by regulations under this Act) as if they contained a provision making any contravention thereof, or failure to comply therewith, an offence under this Act.

(3) Any order having effect under the Public Health (Shellfish) Regulations, 1934 (being certain Regulations made under enactments repealed by the Food and Drugs Act, 1938, and continued in force by that Act), being an order which was in force immediately before the commencement of this Act—

- (a) shall continue in force under the said Regulations of 1934, and
- (b) may be further continued by regulations made under section thirteen of this Act, as if it had been made under such regulations.

2.—(1) Any order made under Regulation 2 of the Defence (Sale of Food) Regulations, 1943 (being Regulations revoked by the Food and Drugs Amendment Act, 1954, with a saving for orders made thereunder), being an order which was in force immediately before the commencement of this Act shall—

- (a) in the case of an order made by the Minister of Food, or by the Minister of Agriculture, Fisheries and Food, for the purposes of sub-paragraph (a) of paragraph (1) of the said Regulation 2, continue in force and have effect as if contained in regulations made by the Ministers under section seven of this Act.
- (b) in the case of an order made by the Board of Trade for the purposes of the said sub-paragraph (a), continue in force and have effect as if contained in regulations made by the Board under the said section seven, and
- (c) in the case of an order made by the Minister of Food, or by the Minister of Agriculture, Fisheries and Food, for the purposes of sub-paragraph (b) of paragraph (1) of the said Regulation 2, continue in force and have effect as if contained in regulations made by the Ministers under section four of this Act;

and references in this Act to regulations made thereunder shall be construed accordingly.

(2) Any order to which the foregoing sub-paragraph applies may be varied or revoked accordingly by regulations made under section four or section seven of this Act, as the case may be.

12TH SCH.
—cont.

(3) Any order to which sub-paragraph (1) of this paragraph applies shall have effect (subject to any variation thereof by regulations under this Act) as if it contained a provision making any contravention thereof or failure to comply therewith, an offence under this Act; and any such order shall also have effect as if it specified, as the authority to enforce and execute within their area the provisions of the order,—

- (a) in the case of an order made by the Minister of Food, or by the Minister of Agriculture, Fisheries and Food, food and drugs authorities,
- (b) in the case of an order made by the Board of Trade, local authorities for the purposes of the Weights and Measures Acts, 1878 to 1936.

General

3. Any order, byelaw, notice, registration, licence, application, declaration, resolution, direction, requirement, consent, approval, certificate, decision, determination, agreement, apportionment, instrument or other thing whatsoever which was made, effected, granted, renewed, passed, issued, given, or done under any enactment repealed by this Act shall, if in force immediately before the commencement of this Act, continue in force and have effect as if made, effected, granted, renewed, passed, issued, given or done under the corresponding enactment in this Act.

4. Without prejudice to the generality of the foregoing provisions of this Schedule and without prejudice to any provision of this Act which refers to things done, made, or given or having effect as if given, under any enactment repealed by this Act,—

- (a) anything begun under or for the purposes of any enactment repealed by this Act may be continued, as if begun under, or for the purposes of, the corresponding provision of this Act, subject in all respects to the like provisions;
- (b) where any provision of this Act refers expressly or by implication to things done or made, or falling to be done or made, or to things suffered (including convictions), or to events which have occurred, at any time in the past, under or for the purposes of, or by reference to, this Act or under, or for the purposes of, or by reference to, a particular provision or particular provisions of this Act, then so far as may be necessary for securing the continuity of the law contained in the enactments repealed by this Act that reference shall be construed as, or as including, a reference to things done or made, or falling to be done or made, or to things suffered, (including convictions), or to events which have occurred, under, or for the purposes of, or by reference to, the enactments repealed by this Act or the corresponding provision or provisions thereof:

Provided that—

- (i) subsection (3) of section seventy-seven of this Act shall apply only to resolutions passed after the twenty-fourth day of November, nineteen hundred and fifty-four; and

12TH SCH.
—cont.

- (ii) sections one hundred and six and one hundred and seven of this Act shall not be taken as applying in relation to offences committed before the commencement of this Act.

5. So much of any enactment or document, including enactments and documents passed or made after the passing of this Act, as refers expressly or by implication to any Act repealed by this Act, or to any enactment contained in such an Act, shall, if and so far as the nature of the subject-matter of the enactment or document permits, be construed as referring to this Act, or to the corresponding provision therein, as the case may be.

PART II SAVINGS

6. No repeal effected by the Food and Drugs Act, 1938, shall be taken as having affected any rights, duties or privileges vested in, or imposed on, the council of the metropolitan borough of Woolwich in relation to their markets.

7.—(1) The repeal by this Act of section five of the Slaughterhouses Act, 1954, and of section twenty-eight of the Food and Drugs Amendment Act, 1954, shall not affect—

- (a) any liability of a local authority to pay compensation under subsection (2) or subsection (4) of section five of the Slaughterhouses Act, 1954, being a liability which has not been discharged before the commencement of this Act,
- (b) the continued operation of subsection (3) of section twenty-eight of the Food and Drugs Amendment Act, 1954, in relation to compensation payable by virtue of either of the said subsections (2) and (4), or
- (c) the power of the Minister to make to a local authority, in respect of any such liability incurred by them as is mentioned in paragraph (a) of this subsection, such a grant as is specified in subsection (8) of section five of the Slaughterhouses Act, 1954;

but any claim to such compensation as aforesaid may be proceeded with and determined, and the Minister may make such a grant as aforesaid, in the same manner and subject in all respects to the same provisions as if this Act had not been passed.

(2) Notwithstanding anything in this Act, the First Schedule to the Slaughterhouses Act, 1954 (by which temporary provision was made for the grant of licences as of right in the case of certain slaughterhouses, subject to the premises in question being, or being rendered, suitable), shall continue after the commencement of this Act to have the same operation in relation to slaughterhouse licences within the meaning of this Act, and to their grant, renewal or cancellation, as it would, if this Act had not been passed, have had in relation to slaughterhouse licences within the meaning of the said Act of 1954, and to their grant, renewal or cancellation, and—

- (a) any reference in the First Schedule to the Slaughterhouses Act, 1954, to a particular provision or particular provisions of that Act or of the Food and Drugs Act, 1938, shall be construed as, or as including, a reference to the corresponding provision or provisions of this Act;

- (b) subsection (2) of section sixty-five of this Act shall have effect subject to the same limitation as that to which the corresponding enactment in subsection (3) of section one of the Slaughter of Animals (Amendment) Act, 1954, was made subject by virtue of paragraph (b) of the last-mentioned subsection.

12TH SCH.
—cont.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Health Act, 1875	38 & 39 Vict. c. 55.
Sale of Food and Drugs Act, 1875	38 & 39 Vict. c. 63.
Municipal Corporations Act, 1882	45 & 46 Vict. c. 50.
Board of Agriculture Act, 1889	52 & 53 Vict. c. 30.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Public Health (Ireland) Act, 1896	59 & 60 Vict. c. 54.
Re-election of Ministers Act, 1919	9 & 10 Geo. 5. c. 2.
Census Act, 1920	10 & 11 Geo. 5. c. 41.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Markets and Fairs (Weighing of Cattle) Act, 1926	16 & 17 Geo. 5. c. 21.
Sale of Food (Weights and Measures) Act, 1926	16 & 17 Geo. 5. c. 63.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Road and Rail Traffic Act, 1933	23 & 24 Geo. 5. c. 53.
House of Commons Disqualification (Declaration of Law) Act, 1935	25 & 26 Geo. 5. c. 38.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Food and Drugs Act, 1938	1 & 2 Geo. 6. c. 56.
London Government Act, 1939	2 & 3 Geo. 6. c. 40.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Patents Act, 1949	12, 13 & 14 Geo. 6. c. 87.
Shops Act, 1950	14 Geo. 6. c. 28.
Food and Drugs (Milk, Dairies and Artificial Cream) Act, 1950	14 Geo. 6. c. 35.
Diseases of Animals Act, 1950	14 Geo. 6. c. 36.
Dangerous Drugs Act, 1951	14 & 15 Geo. 6. c. 48.
Customs and Excise Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 44.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Slaughterhouses Act, 1954	2 & 3 Eliz. 2. c. 42.
Slaughter of Animals (Amendment) Act, 1954	2 & 3 Eliz. 2. c. 59.
Food and Drugs Amendment Act, 1954... ..	2 & 3 Eliz. 2. c. 67.

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